



FLORIDA DEPARTMENT OF Environmental Protection

Northwest District Office
160 W Government St., Suite 308
Pensacola, Florida 32502-5794

Ron DeSantis
Governor

Jay Collins
Lt. Governor

Alexis A. Lambert
Secretary

October 30, 2025

In the Matter of an
Application for Permit by:

Dolomite, Inc.
David Sloan, President
P.O. Box 1568
Marianna, Florida 32447-5568
sloand54@hotmail.com

File Number FL0101192-009-IW3S
Jackson County
Dolomite, Inc

NOTICE OF PERMIT ISSUANCE

Enclosed is Permit Number FL0101192 to operate the Dolomite, Inc, issued under Chapter 403, Florida Statutes.

Monitoring requirements under this permit are effective on the first day of the second month following the effective date of the permit. Until such time, the permittee shall continue to monitor and report in accordance with previously effective permit requirements, if any.

NOTICE OF RIGHTS

This action is final and effective on the date filed with the Clerk of the Department unless a petition for an administrative hearing is timely filed under Sections 120.569 and 120.57, F.S., before the deadline for filing a petition. On the filing of a timely and sufficient petition, this action will not be final and effective until further order of the Department. Because the administrative hearing process is designed to formulate final agency action, the hearing process may result in a modification of the agency action or even denial of the application.

Petition for Administrative Hearing

A person whose substantial interests are affected by the Department's action may petition for an administrative proceeding (hearing) under Sections 120.569 and 120.57, F.S. Pursuant to Rules 28-106.201 and 28-106.301, F.A.C., a petition for an administrative hearing must contain the following information:

- (a) The name and address of each agency affected and each agency's file or identification number, if known;
- (b) The name, address, any e-mail address, any facsimile number, and telephone number of the petitioner, if the petitioner is not represented by an attorney or a qualified representative; the name, address, and telephone number of the petitioner's representative, if any, which shall be the address for service purposes during the course of the proceeding; and an explanation of how the petitioner's substantial interests will be affected by the agency determination;

- (c) A statement of when and how the petitioner received notice of the agency decision;
- (d) A statement of all disputed issues of material fact. If there are none, the petition must so indicate;
- (e) A concise statement of the ultimate facts alleged, including the specific facts that the petitioner contends warrant reversal or modification of the agency's proposed action;
- (f) A statement of the specific rules or statutes that the petitioner contends require reversal or modification of the agency's proposed action, including an explanation of how the alleged facts relate to the specific rules or statutes; and
- (g) A statement of the relief sought by the petitioner, stating precisely the action that the petitioner wishes the agency to take with respect to the agency's proposed action.

The petition must be filed (received by the Clerk) in the Office of General Counsel of the Department at 3900 Commonwealth Boulevard, Mail Station 35, Tallahassee, Florida 32399-3000, or via electronic correspondence at Agency_Clerk@FloridaDEP.gov. Also, a copy of the petition shall be mailed to the applicant at the address indicated above at the time of filing.

Time Period for Filing a Petition

In accordance with Rule 62-110.106(3), F.A.C., petitions for an administrative hearing by the applicant and persons entitled to written notice under Section 120.60(3), F.S., must be filed within 14 days of receipt of this written notice. Petitions filed by any persons other than the applicant, and other than those entitled to written notice under Section 120.60(3), F.S., must be filed within 14 days of publication of the notice or within 14 days of receipt of the written notice, whichever occurs first. You cannot justifiably rely on the finality of this decision unless notice of this decision and the right of substantially affected persons to challenge this decision has been duly published or otherwise provided to all persons substantially affected by the decision. While you are not required to publish notice of this action, you may elect to do so pursuant Rule 62-110.106(10)(a), F.A.C.

The failure to file a petition within the appropriate time period shall constitute a waiver of that person's right to request an administrative determination (hearing) under Sections 120.569 and 120.57, F.S., or to intervene in this proceeding and participate as a party to it. Any subsequent intervention (in a proceeding initiated by another party) will be only at the discretion of the presiding officer upon the filing of a motion in compliance with Rule 28-106.205, F.A.C. If you do not publish notice of this action, this waiver may not apply to persons who have not received a clear point-of-entry.

Extension of Time

Under Rule 62-110.106(4), F.A.C., a person whose substantial interests are affected by the Department's action may also request an extension of time to file a petition for an administrative hearing. The Department may, for good cause shown, grant the request for an extension of time. Requests for extension of time must be filed with the Office of General Counsel of the Department at 3900 Commonwealth Boulevard, Mail Station 35, Tallahassee, Florida 32399-3000, or via electronic correspondence at Agency_Clerk@FloridaDEP.gov, before the deadline for filing a petition for an administrative hearing. A timely request for extension of time shall toll the running of the time period for filing a petition until the request is acted upon.

Mediation

Mediation is not available in this proceeding.

Judicial Review

Once this decision becomes final, any party to this action has the right to seek judicial review pursuant to Section 120.68, F.S., by filing a Notice of Appeal pursuant to Florida Rules of Appellate Procedure 9.110 and 9.190 with the Clerk of the Department in the Office of General Counsel (Station #35, 3900 Commonwealth Boulevard, Tallahassee, Florida 32399-3000) and by filing a copy of the Notice of Appeal accompanied by the applicable filing fees with the appropriate district court of appeal. The notice must be filed within 30 days from the date this action is filed with the Clerk of the Department.

EXECUTION AND CLERKING

Executed in Pensacola, Florida.

STATE OF FLORIDA DEPARTMENT OF ENVIRONMENTAL PROTECTION



William A. Evans
Water and Wastewater Permitting Manager

Attachment(s):

1. Permit No. FL0101192-009-IW3S
2. Fact Sheet with Level I WQBEL FL0101192-009-IW3S
3. Notice of Permit Issuance for optional newspaper publication

CERTIFICATE OF SERVICE

The undersigned duly designated deputy clerk hereby certifies that this document and all attachments were sent on the filing date below to the following listed persons:

Leon E. Nobles III, P.E., David H. Melvin, Inc. (genenobles@melvineng.com)
Chief, NPDES Permitting Section, EPA Region 4 (r4npdespermits@epa.gov)
Rett Daniels, Deputy County Administrator, Jackson County (danielsr@jacksoncountyfl.gov)
Cameron Baxley, Riverkeeper, Apalachicola Riverkeeper (cameron@apalachicolariverkeeper.org)
Jerrick Saquibal, P.E., CFM, Bureau Chief of Resource Projects & Planning, Northwest Florida
Water Management District (jerrick.saquibal@nwfwater.com)

FILING AND ACKNOWLEDGMENT

FILED, on this date, pursuant to Section 120.52, F. S., with the designated Department Clerk, receipt of which is hereby acknowledged.



Clerk

October 30, 2025
Date



FLORIDA DEPARTMENT OF Environmental Protection

Ron DeSantis
Governor

Jay Collins
Lt. Governor

Alexis A. Lambert
Secretary

Northwest District Office
160 W. Government Street, Suite 308
Pensacola, Florida 32502-5740

STATE OF FLORIDA INDUSTRIAL WASTEWATER FACILITY PERMIT

PERMITTEE:

Dolomite, Inc.

RESPONSIBLE OFFICIAL:

David Sloan, President

P.O. Box 1568

Marianna, Florida 32447- 5568

(850) 482-5570

sloand54@hotmail.com

PERMIT NUMBER: FL0101192 (Minor)

FILE NUMBER: FL0101192-009-IW3S

ISSUANCE DATE: October 30, 2025

EFFECTIVE DATE: October 30, 2025

EXPIRATION DATE: October 29, 2030

FACILITY:

Dolomite, Inc.

1321 Highway 71

Marianna, FL 32448-5399

Jackson County

Latitude: 30° 39' 29.64" N Longitude: 85° 9' 59.77" W

This permit is issued under the provisions of Chapter 403, Florida Statutes (F.S.), and applicable rules of the Florida Administrative Code (F.A.C.) and constitutes authorization to discharge to waters of the state under the National Pollutant Discharge Elimination System. This permit does not constitute authorization to discharge wastewater other than as expressly stated in this permit. The above-named permittee is hereby authorized to operate the facilities in accordance with the documents attached hereto and specifically described as follows:

FACILITY DESCRIPTION:

Dolomite, Inc. mines dolomite, a magnesia-rich sedimentary rock resembling limestone. The mining operation consists of fracturing the subsurface dolomite by boring and blasting with explosive charges. The rock is then excavated to a depth of between 40-50 feet with draglines and stockpiled adjacent to the man-made lake to allow the material to dewater. The dolomite material is then loaded on all-terrain dump trucks and transported approximately 2,200 feet to a processing area, where the rock is then dry screened into either crushed rock or agricultural lime. Crushed rock is then screened through a wet rock washer and classified into various sizes. Washwater, fine screenings, and stormwater from the washing operation is collected into two sediment basins and finally to an old mining quarry with no discharge. Agricultural lime is taken to a drying bed. Stormwater runoff from the drying bed is collected into two sediment basins and finally to an old mining quarry with no discharge.

Mining operations within the man-made lake result in an industrial wastewater discharge. The attached site aerial map shows the locations of mining operations, sedimentation basins, overflow structure and outfall.

WASTEWATER TREATMENT:

The man-made lake flows in a towards the southeast through a narrow channel into a small lake that serves as a final sedimentation basin. The water flows from this basin over three rip-rap turbidity barriers and through a floating turbidity barrier. The treated water flows through a 48-inch culvert and discharges into the Chipola River (WBID 51D), a Class III freshwater and an Outstanding Florida Water (OFW).

Following crushing and classification, the rock is washed in an area west of the administrative building. The process wastewater from this washing operation is collected in two sediment basins for reuse in the rock washing process. Sediment is periodically removed from these ponds, and it is subsequently dried and sold as agricultural lime. Washwater, fine screenings, and stormwater from the washing operation is collected into two sediment basins and finally to an old mining quarry with no discharge. Agricultural lime is taken to a drying bed. Stormwater runoff from the drying bed is collected into two sediment basins and finally to an old mining quarry with no discharge.

DISPOSAL:

Surface Water Discharge D-001: An existing, 9.7 MGD annual average daily flow (AADF), discharge of wastewater from the man-made lake to the Chipola River (WBID 51D), a Class III freshwater and an Outstanding Florida Water (OFW), via Outfall D-001. The outfall is a 48-inch reinforced concrete pipe (RCP) located approximately at latitude 30° 38' 50.24" N, longitude 85° 10' 35.32" W.

IN ACCORDANCE WITH: The limitations, monitoring requirements and other conditions set forth in this Cover Sheet and Part I through Part IX on pages 2 through 13 of this permit.

I. EFFLUENT LIMITATIONS AND MONITORING REQUIREMENTS

A. Surface Water Discharges

1. During the period beginning on the effective date and lasting through the expiration date of this permit, the permittee is authorized to discharge Process Wastewater and Stormwater from Outfall D-001 to Chipola River. Such discharge shall be limited and monitored by the permittee as specified below and reported in accordance with Permit Condition I.0.3.:

Parameter	Units	Max. /Min	Effluent Limitations		Monitoring Requirements			Notes
			Limit	Statistical Basis	Frequency of Analysis	Sample Type	Monitoring Site Number	
Flow	MGD	Max	Report	Monthly Average	Monthly	Calculated	EFF-01	
Turbidity	NTU	Max	See Cond. I.A.4	Single Sample	Monthly	Grab	EFF-01	See I.A.4
Turbidity (background)	NTU	Max	Report	Single Sample	Monthly	Grab	SWB-01	See I.A.4
Solids, Total Suspended	mg/L	Max	20.0	Daily Maximum	Monthly	Grab	EFF-01	
pH	s.u.	Min Max	6.0 8.5	Daily Minimum Daily Maximum	Monthly	Grab	EFF-01	

2. Effluent samples shall be taken at the monitoring site locations listed in Permit Condition I.A.1. and as described below:

Monitoring Site Number	Description of Monitoring Site
EFF-01	EFFLUENT AT DISCHARGE CULVERT
SWB-01	background in Chipola River

3. The discharge shall not contain components that, alone or in combination with other substances or in combination with other components of the discharge:
 - a. Settle to form putrescent deposits or otherwise create a nuisance; or
 - b. Float as debris, scum, oil, or other matter in such amounts as to form nuisances; or
 - c. Produce color, odor, taste, turbidity, or other conditions in such degree as to create a nuisance; or
 - d. Are acutely toxic; or
 - e. Are present in concentrations which are carcinogenic, mutagenic, or teratogenic to human beings or to significant, locally occurring, wildlife or aquatic species, unless specific standards are established for such components in subsection 62-302.500(2) or Rule 62-302.530, F.A.C.; or
 - f. Pose a serious danger to the public health, safety, or welfare.

[62-302.500(1)(a)1-6]

4. The limit for "Turbidity" shall be calculated as follows:

Limit = Background Turbidity + 29 NTU

The measured effluent value shall be recorded on the DMR in the parameter row for "Turbidity (effluent)." The measured background value shall be recorded on the DMR in the parameter row for "Turbidity (background)" The calculated effluent limit shall be recorded on the DMR in the parameter row for "Turbidity (calculated limit)." Compliance with the effluent limitation is determined by calculating the difference between the measured effluent value and the calculated. The compliance value shall be recorded on the DMR in the parameter row for "Turbidity (effluent minus calculated limit)."

The compliance value shall not exceed 0.00. [62-302.530(70)]

B. Other Limitations and Monitoring and Reporting Requirements

1. The sample collection, analytical test methods, and method detection limits (MDLs) applicable to this permit shall be conducted using a sufficiently sensitive method to ensure compliance with applicable water quality standards and effluent limitations and shall be in accordance with Rule 62-4.246, Chapters 62-160 and 62-600, F.A.C., and 40 CFR 136, as appropriate. The list of Department established analytical methods, and corresponding MDLs (method detection limits) and PQLs (practical quantitation limits), which is titled "FAC 62-4 MDL/PQL Table (November 10, 2020)" is available at <https://floridadep.gov/dear/quality-assurance/content/quality-assurance-resources>. The MDLs and PQLs as described in this list shall constitute the minimum acceptable MDL/PQL values and the Department shall not accept results for which the laboratory's MDLs or PQLs are greater than those described above unless alternate MDLs and/or PQLs have been specifically approved by the Department for this permit. Any method included in the list may be used for reporting as long as it meets the following requirements:
 - a. The laboratory's reported MDL and PQL values for the particular method must be equal or less than the corresponding method values specified in the Department's approved MDL and PQL list;
 - b. The laboratory reported MDL for the specific parameter is less than or equal to the permit limit or the applicable water quality criteria, if any, stated in Chapter 62-302, F.A.C. Parameters that are listed as "report only" in the permit shall use methods that provide an MDL, which is equal to or less than the applicable water quality criteria stated in 62-302, F.A.C.; and
 - c. If the MDLs for all methods available in the approved list are above the stated permit limit or applicable water quality criteria for that parameter, then the method with the lowest stated MDL shall be used.

When the analytical results are below method detection or practical quantitation limits, the permittee shall report the actual laboratory MDL and/or PQL values for the analyses that were performed following the instructions on the applicable discharge monitoring report.

Where necessary, the permittee may request approval of alternate methods or for alternative MDLs or PQLs for any approved analytical method. Approval of alternate laboratory MDLs or PQLs are not necessary if the laboratory reported MDLs and PQLs are less than or equal to the permit limit or the applicable water quality criteria, if any, stated in Chapter 62-302, F.A.C. Approval of an analytical method not included in the above-referenced list is not necessary if the analytical method is approved in accordance with 40 CFR 136 or deemed acceptable by the Department. *[62-4.246 and 62-160]*

2. The permittee shall provide safe access points for obtaining representative influent and effluent samples which are required by this permit. *[62-620.320(6)]*
3. Monitoring requirements under this permit are effective on the first day of the second month following the effective date of the permit. Until such time, the permittee shall continue to monitor and report in accordance with previously effective permit requirements, if any. During the period of operation authorized by this permit, the permittee shall complete and submit to the Department Discharge Monitoring Reports (DMRs) in accordance with the frequencies specified by the REPORT type (i.e. monthly, quarterly, semiannual, annual, etc.) indicated on the DMR forms attached to this permit. Unless specified otherwise in this permit, monitoring results for each monitoring period shall be submitted in accordance with the associated DMR due dates below. DMRs shall be submitted for each required monitoring period including periods of no discharge.

REPORT Type on DMR	Monitoring Period	Submit by
Monthly	first day of month - last day of month	28 th day of following month
Once Every Two Months	January 1 - February 28/29 March 1 - April 30 May 1 - June 30 July 1 - August 31 September 1 - October 31 November 1 - December 31	March 28 May 28 July 28 September 28 November 28 January 28
Quarterly	January 1 - March 31 April 1 - June 30 July 1 - September 30 October 1 - December 31	April 28 July 28 October 28 January 28
Semiannual	January 1 - June 30 July 1 - December 31	July 28 January 28
Annual	January 1 - December 31	January 28

The permittee shall use the electronic DMR system approved by the Department (EzDMR) and shall electronically submit the completed DMR forms using the DEP Business Portal at <https://www.fldepportal.com/go/>, unless the permittee has a waiver from the Department in accordance with 40 CFR 127.15. Reports shall be submitted to the Department by the twenty-eighth (28th) of the month following the month of operation.

[62-620.610(18)]

4. Unless specified otherwise in this permit, all reports and other information required by this permit, including 24-hour notifications, shall be submitted to or reported to, as appropriate, the Department's Northwest District Office at the address specified below:

Florida Department of Environmental Protection
Northwest District
160 W. Government Street
Suite 308
Pensacola, Florida 32502-5740

Phone Number - (850) 595-8300

Email - nwd_wastewatercompliance@floridadep.gov

[62-620.305]

5. All reports and other information shall be signed in accordance with the requirements of Rule 62-620.305, F.A.C. *[62-620.305]*
6. If there is no discharge from the facility on a day when the facility would normally sample, the sample shall be collected on the day of the next discharge. *[62-620.320(6)]*

II. SLUDGE MANAGEMENT REQUIREMENTS

1. Section II is not applicable to this facility.

III. GROUND WATER REQUIREMENTS

1. Section III is not applicable to this facility.

IV. ADDITIONAL LAND APPLICATION REQUIREMENTS

1. Mining operation: Not Applicable
2. Rock washing operation:
 - a. The permittee shall maintain facilities to retain process wastewater and stormwater runoff. The retention facilities shall be designed to retain runoff for storm events up to a 25-year, 24-hour storm event.
 - b. All earthen dams storing process wastewater and runoff above grade shall be constructed and maintained in accordance with good engineering practice.
 - c. There shall be no discharge to surface waters except as a result of storms exceeding a 25-year, 24-hour storm event.
 - d. No chemicals, except water conditioners or pH adjusters which have been approved by the Department as not adversely affecting the quality of the water contained in the mine, shall be added to the process water used for transporting, washing or processing of the limestone.

[62-620.320(6) FAC]

V. OPERATION AND MAINTENANCE REQUIREMENTS

1. During the period of operation authorized by this permit, the wastewater facilities shall be operated under the supervision of a person who is qualified by formal training and/or practical experience in the field of water pollution control. *[62-620.320(6)]*

2. The permittee shall maintain the following records and make them available for inspection at the following address: on the site of the permitted facility.
 - a. Records of all compliance monitoring information, including all calibration and maintenance records and all original strip chart recordings for continuous monitoring instrumentation, including, if applicable, a copy of the laboratory certification showing the certification number of the laboratory, for at least three years from the date the sample or measurement was taken;
 - b. Copies of all reports required by the permit for at least three years from the date the report was prepared;
 - c. Records of all data, including reports and documents, used to complete the application for the permit for at least three years from the date the application was filed;
 - d. A copy of the current permit;
 - e. A copy of any required record drawings; and
 - f. Copies of the logs and schedules showing plant operations and equipment maintenance for three years from the date of the logs or schedules.

[62-620.350]

VI. SCHEDULES

1. The permittee is not authorized to discharge to waters of the state after the expiration date of this permit, unless:
 - a. The permittee has applied for renewal of this permit at least 180 days before the expiration date of this permit using the appropriate forms listed in Rule 62-620.910, F.A.C., and in the manner established in the Department of Environmental Protection Guide to Permitting Wastewater Facilities or Activities Under Chapter 62-620, F.A.C., including submittal of the appropriate processing fee set forth in Rule 62-4.050, F.A.C.; or
 - b. The permittee has made complete the application for renewal of this permit before the permit expiration date.

[62-620.335(1)-(4)]

VII. BEST MANAGEMENT PRACTICES/STORMWATER POLLUTION PREVENTION PLANS

1. **BMP Plan:**
 For purposes of this part, the terms "pollutant" or "pollutants" refer to any substance listed as toxic under Section 307(a)(1) of the Clean Water Act (the "Act"), oil, as defined in Section 311(a)(1) of the Act, and any substance listed as hazardous under Section 311 of the Act. The permittee shall develop and implement a Best Management Practices (BMP) plan which prevents, or minimizes, the potential for the release of pollutants from ancillary activities, including material storage areas; plant site runoff; in-plant transfer, process and material handling areas; loading and unloading operations; and sludge and waste disposal areas, to the waters of the State through plant site runoff; spillage or leaks; sludge or waste disposal; or drainage from raw material storage.
2. **Implementation:**
 The permittee shall continue to implement and follow the current BMP plan in-place for the Facility.
3. **General Requirements:** The BMP plan shall:
 - a. Be documented in narrative form, and shall include any necessary plot plans, drawings or maps.
 - b. Establish specific objectives for the control of pollutants.
 - (1) Each facility component or system shall be examined for its potential for causing a release of significant amounts of pollutants to waters of the State due to equipment failure, improper operation, natural phenomena such as rain or snowfall, etc.
 - (2) Where experience indicates a reasonable potential for equipment failure (e.g., a tank overflow or leakage), natural conditions (e.g., precipitation), or other circumstances to result in significant amounts of pollutants reaching surface waters, the plan should include a prediction of the direction, rate of flow, and total quantity of pollutants which could be discharged from the facility as a result of each condition or circumstance.

- c. Establish specific best management practices to meet the objectives identified under paragraph (b) of this subsection, addressing each component or system capable of causing a release of significant amounts of pollutants to the waters of the State, and identifying specific preventative or remedial measures to be implemented.
 - d. Be reviewed by plant engineering staff and plant manager.
 4. Documentation:

The permittee shall maintain the BMP plan at the facility and shall make the plan available to the Department upon request.
 5. BMP Plan Modification:

The permittee shall amend the BMP plan whenever there is a change in the facility or change in the operation of the facility which materially increases the potential for the ancillary activities to result in a discharge of significant amounts of pollutants.
 6. Modification for Ineffectiveness:

If the BMP plan proves to be ineffective in achieving the general objective of preventing the release of significant amounts of pollutants to surface waters and the specific objectives and requirements under paragraphs (b) and (c) of item 3, the permit shall be subject to modification pursuant to rule 62-620.325, F.A.C., to incorporate revised BMPs.

[62-620.100(3)(m) FAC]

VIII. OTHER SPECIFIC CONDITIONS

1. Where required by Chapter 471 or Chapter 492, F.S., applicable portions of reports that must be submitted under this permit shall be signed and sealed by a professional engineer or a professional geologist, as appropriate. *[62-620.310(4)]*
2. The permittee shall provide verbal notice to the Department's Northwest District Office as soon as practical after discovery of a sinkhole or other karst feature within an area for the management or application of wastewater, or wastewater sludges. The Permittee shall immediately implement measures appropriate to control the entry of contaminants, and shall detail these measures to the Department's Northwest District Office in a written report within 7 days of the sinkhole discovery. *[62-620.320(6)]*
3. Existing manufacturing, commercial, mining, and silvicultural wastewater facilities or activities that discharge into surface waters shall notify the Department as soon as they know or have reason to believe:
 - a. That any activity has occurred or will occur which would result in the discharge, on a routine or frequent basis, of any toxic pollutant which is not limited in the permit, if that discharge will exceed the highest of the following levels;
 - (1) One hundred micrograms per liter,
 - (2) Two hundred micrograms per liter for acrolein and acrylonitrile; five hundred micrograms per liter for 2, 4-dinitrophenol and for 2-methyl-4, 6-dinitrophenol; and one milligram per liter for antimony, or
 - (3) Five times the maximum concentration value reported for that pollutant in the permit application; or
 - b. That any activity has occurred or will occur which would result in any discharge, on a non-routine or infrequent basis, of a toxic pollutant which is not limited in the permit, if that discharge will exceed the highest of the following levels;
 - (1) Five hundred micrograms per liter,
 - (2) One milligram per liter for antimony, or
 - (3) Ten times the maximum concentration value reported for that pollutant in the permit application.

[62-620.625(1)]

4. The permit shall be revised, or alternatively, revoked and reissued in accordance with the provisions contained in Rules 62-620.325 and 62-620.345 F.A.C., if applicable, or to comply with any applicable effluent standard or limitation issued or approved under Sections 301(b)(2)(C) and (D), 304(b)(2) and 307(a)(2) of the Clean Water Act (the Act), as amended, if the effluent standards, limitations, or water quality standards so issued or approved:
 - a. Contains different conditions or is otherwise more stringent than any condition in the permit/or;
 - b. Controls any pollutant not addressed in the permit. The permit as revised or reissued under this paragraph shall contain any other requirements then applicable.

[62-620.320(6)]
5. The permit may be reopened to adjust effluent limitations or monitoring requirements should future Water Quality Based Effluent Limitation determinations, water quality studies, DEP approved changes in water quality standards, or other information show a need for a different limitation or monitoring requirement.

[62-620.320(6)]
6. The Department may develop a Total Maximum Daily Load (TMDL) during the life of the permit. Once a TMDL has been established and adopted by rule, the Department shall revise this permit to incorporate the final findings of the TMDL. *[62-620.320(6)]*
7. If prehistoric or historic artifacts, such as pottery or ceramics, projectile points, dugout canoes, metal - implements, historic building materials, or any other physical remains that could be associated with Native American, early European, or American settlement are encountered at any time within the project site area, the permitted project shall cease all activities involving subsurface disturbance in the vicinity of the discovery. The applicant shall contact the Florida Department of State, Division of Historical Resources, Compliance and Review Section at (850)-245-6333. Project activities shall not resume without verbal and/or written authorization. In the event that unmarked human remains are encountered during permitted activities, all work shall stop immediately and the proper authorities notified in accordance with Section 872.05, *Florida Statutes*. *[62-620.320(6)]*

IX. GENERAL CONDITIONS

1. The terms, conditions, requirements, limitations and restrictions set forth in this permit are binding and enforceable pursuant to Chapter 403, Florida Statutes. Any permit noncompliance constitutes a violation of Chapter 403, Florida Statutes, and is grounds for enforcement action, permit termination, permit revocation and reissuance, or permit revision. *[62-620.610(1)]*
2. This permit is valid only for the specific processes and operations applied for and indicated in the approved drawings or exhibits. Any unauthorized deviations from the approved drawings, exhibits, specifications or conditions of this permit constitutes grounds for revocation and enforcement action by the Department. *[62-620.610(2)]*
3. As provided in subsection 403.087(7), F.S., the issuance of this permit does not convey any vested rights or any exclusive privileges. Neither does it authorize any injury to public or private property or any invasion of personal rights, nor authorize any infringement of federal, state, or local laws or regulations. This permit is not a waiver of or approval of any other Department permit or authorization that may be required for other aspects of the total project which are not addressed in this permit. *[62-620.610(3)]*
4. This permit conveys no title to land or water, does not constitute state recognition or acknowledgment of title, and does not constitute authority for the use of submerged lands unless herein provided and the necessary title or leasehold interests have been obtained from the State. Only the Trustees of the Internal Improvement Trust Fund may express State opinion as to title. *[62-620.610(4)]*
5. This permit does not relieve the permittee from liability and penalties for harm or injury to human health or welfare, animal or plant life, or property caused by the construction or operation of this permitted source; nor does it allow the permittee to cause pollution in contravention of Florida Statutes and Department rules, unless specifically authorized by an order from the Department. The permittee shall take all reasonable steps to minimize or prevent any discharge, reuse of reclaimed water, or residuals use or disposal in violation of this permit which has a reasonable likelihood of adversely affecting human health or the environment. It shall not be a defense for a permittee in an enforcement action that it would have been necessary to halt or reduce the permitted activity in order to maintain compliance with the conditions of this permit. *[62-620.610(5)]*

6. If the permittee wishes to continue an activity regulated by this permit after its expiration date, the permittee shall apply for and obtain a new permit. *[62-620.610(6)]*
7. The permittee shall at all times properly operate and maintain the facility and systems of treatment and control, and related appurtenances, that are installed and used by the permittee to achieve compliance with the conditions of this permit. This provision includes the operation of backup or auxiliary facilities or similar systems when necessary to maintain or achieve compliance with the conditions of the permit. *[62-620.610(7)]*
8. This permit may be modified, revoked and reissued, or terminated for cause. The filing of a request by the permittee for a permit revision, revocation and reissuance, or termination, or a notification of planned changes or anticipated noncompliance does not stay any permit condition. *[62-620.610(8)]*
9. The permittee, by accepting this permit, specifically agrees to allow authorized Department personnel, including an authorized representative of the Department and authorized EPA personnel, when applicable, upon presentation of credentials or other documents as may be required by law, and at reasonable times, depending upon the nature of the concern being investigated, to:
 - a. Enter upon the permittee's premises where a regulated facility, system, or activity is located or conducted, or where records shall be kept under the conditions of this permit;
 - b. Have access to and copy any records that shall be kept under the conditions of this permit;
 - c. Inspect the facilities, equipment, practices, or operations regulated or required under this permit; and
 - d. Sample or monitor any substances or parameters at any location necessary to assure compliance with this permit or Department rules.*[62-620.610(9)]*
10. In accepting this permit, the permittee understands and agrees that all records, notes, monitoring data, and other information relating to the construction or operation of this permitted source which are submitted to the Department may be used by the Department as evidence in any enforcement case involving the permitted source arising under the Florida Statutes or Department rules, except as such use is proscribed by Section 403.111, F.S., or Rule 62-620.302, F.A.C. Such evidence shall only be used to the extent that it is consistent with the Florida Rules of Civil Procedure and applicable evidentiary rules. *[62-620.610(10)]*
11. When requested by the Department, the permittee shall within a reasonable time provide any information required by law which is needed to determine whether there is cause for revising, revoking and reissuing, or terminating this permit, or to determine compliance with the permit. The permittee shall also provide to the Department upon request copies of records required by this permit to be kept. If the permittee becomes aware of relevant facts that were not submitted or were incorrect in the permit application or in any report to the Department, such facts or information shall be promptly submitted or corrections promptly reported to the Department. *[62-620.610(11)]*
12. Unless specifically stated otherwise in Department rules, the permittee, in accepting this permit, agrees to comply with changes in Department rules and Florida Statutes after a reasonable time for compliance; provided, however, the permittee does not waive any other rights granted by Florida Statutes or Department rules. A reasonable time for compliance with a new or amended surface water quality standard, other than those standards addressed in Rule 62-302.500, F.A.C., shall include a reasonable time to obtain or be denied a mixing zone for the new or amended standard. *[62-620.610(12)]*
13. The permittee, in accepting this permit, agrees to pay the applicable regulatory program and surveillance fee in accordance with Rule 62-4.052, F.A.C. *[62-620.610(13)]*
14. This permit is transferable only upon Department approval in accordance with Rule 62-620.340, F.A.C. The permittee shall be liable for any noncompliance of the permitted activity until the transfer is approved by the Department. *[62-620.610(14)]*
15. The permittee shall give the Department written notice at least 60 days before inactivation or abandonment of a wastewater facility or activity and shall specify what steps will be taken to safeguard public health and safety during and following inactivation or abandonment. *[62-620.610(15)]*

16. The permittee shall apply for a revision to the Department permit in accordance with Rules 62-620.300, F.A.C., and the Department of Environmental Protection Guide to Permitting Wastewater Facilities or Activities Under Chapter 62-620, F.A.C., at least 90 days before construction of any planned substantial modifications to the permitted facility is to commence or with Rule 62-620.325(2), F.A.C., for minor modifications to the permitted facility. A revised permit shall be obtained before construction begins except as provided in Rule 62-620.300, F.A.C. [62-620.610(16)]
17. The permittee shall give advance notice to the Department of any planned changes in the permitted facility or activity which may result in noncompliance with permit requirements. The permittee shall be responsible for any and all damages which may result from the changes and may be subject to enforcement action by the Department for penalties or revocation of this permit. The notice shall include the following information:
 - a. A description of the anticipated noncompliance;
 - b. The period of the anticipated noncompliance, including dates and times; and
 - c. Steps being taken to prevent future occurrence of the noncompliance.[62-620.610(17)]
18. Sampling and monitoring data shall be collected and analyzed in accordance with Rule 62-4.246 and Chapters 62-160, 62-600, and 62-610, F.A.C., and 40 CFR 136, as appropriate.
 - a. Monitoring results shall be reported at the intervals specified elsewhere in this permit and shall be reported on a Discharge Monitoring Report (DMR), DEP Form 62-620.910(10), or as specified elsewhere in the permit.
 - b. If the permittee monitors any contaminant more frequently than required by the permit, using Department approved test procedures, the results of this monitoring shall be included in the calculation and reporting of the data submitted in the DMR.
 - c. Calculations for all limitations which require averaging of measurements shall use an arithmetic mean unless otherwise specified in this permit.
 - d. Except as specifically provided in Rule 62-160.300, F.A.C., any laboratory test required by this permit shall be performed by a laboratory that has been certified by the Department of Health Environmental Laboratory Certification Program (DOH ELCP). Such certification shall be for the matrix, test method and analyte(s) being measured to comply with this permit. For domestic wastewater facilities, testing for parameters listed in Rule 62-160.300(4), F.A.C., shall be conducted under the direction of a certified operator.
 - e. Field activities including on-site tests and sample collection shall follow the applicable standard operating procedures described in DEP-SOP-001/01 adopted by reference in Chapter 62-160, F.A.C.
 - f. Alternate field procedures and laboratory methods may be used where they have been approved in accordance with Rules 62-160.220, and 62-160.330, F.A.C.[62-620.610(18)]
19. Reports of compliance or noncompliance with, or any progress reports on, interim and final requirements contained in any compliance schedule detailed elsewhere in this permit shall be submitted no later than 14 days following each schedule date. [62-620.610(19)]
20. The permittee shall report to the Department any noncompliance which may endanger health or the environment. Any information shall be provided orally within 24 hours from the time the permittee becomes aware of the circumstances. A written submission shall also be provided within five days of the time the permittee becomes aware of the circumstances. The written submission shall contain a description of the noncompliance and its cause; the period of noncompliance including exact dates and times, and if the noncompliance has not been corrected, the anticipated time it is expected to continue; clean up actions taken and status; and steps taken or planned to reduce, eliminate, and prevent recurrence of the noncompliance. For noncompliance events related to sanitary sewer overflows, bypass events, or unauthorized discharges, these reports must include the data described above (with the exception of time of discovery) as well as the type of event (e.g., sanitary sewer overflow, bypass, unauthorized discharge); type of sanitary sewer overflow structure (e.g., manhole); the discharge location address and latitude/longitude; type of water discharged; discharge volumes and volumes recovered; volume discharged to surface waters and receiving waterbody name; types of

human health and environmental impacts of the sanitary sewer overflow, bypass event, or unauthorized discharge (e.g., beach closure); whether the noncompliance was caused by a third party; and whether the noncompliance was related to wet weather. The written submission may be provided electronically using the Department's Business Portal at <https://www.fldepportal.com/go/> (via "Submit" followed by "Report" or "Registration/Notification"). Notice required for public notice of pollution under paragraph (d) may be provided together with the written submission using the Business Portal. All noncompliance events related to sanitary sewer overflows or bypass events submitted after September 14, 2021, shall be submitted electronically.

- a. The following shall be included as information which must be reported within 24 hours under this condition:
 - (1) Any unanticipated bypass which causes any reclaimed water or the effluent to exceed any permit limitation or results in an unpermitted discharge,
 - (2) Any upset which causes any reclaimed water or the effluent to exceed any limitation in the permit,
 - (3) Violation of a maximum daily discharge limitation for any of the pollutants specifically listed in the permit for such notice; and,
 - (4) Any unauthorized discharge to surface or ground waters, except for discharges to ground water of reclaimed water meeting Part III or Part V treatment standards under Chapter 62-610, F.A.C.
- b. Oral reports as required by this subsection shall be provided as follows:
 - (1) For unauthorized releases or spills of treated or untreated wastewater reported pursuant to subparagraph (a)4., that are in excess of 1,000 gallons per incident, or where information indicates that public health or the environment will be endangered, oral reports shall be provided to the Department by calling the STATE WATCH OFFICE TOLL FREE NUMBER (800)320-0519, as soon as practicable, but no later than 24 hours from the time the permittee becomes aware of the discharge. The permittee, to the extent known, shall provide the following information to the State Watch Office:
 - (a) Name, address, and telephone number of person reporting,
 - (b) Name, address, and telephone number of permittee or responsible person for the discharge,
 - (c) Date and time of the discharge and status of discharge (ongoing or ceased),
 - (d) Characteristics of the wastewater spilled or released (untreated or treated, industrial or domestic wastewater),
 - (e) Estimated amount of the discharge,
 - (f) Location or address of the discharge,
 - (g) Source and cause of the discharge,
 - (h) Whether the discharge was contained on-site, and cleanup actions taken to date,
 - (i) Description of area affected by the discharge, including name of water body affected, if any; and,
 - (j) Other persons or agencies contacted.
 - (2) Oral reports, not otherwise required to be provided pursuant to subparagraph (b)1., above, shall be provided to the Department within 24 hours from the time the permittee becomes aware of the circumstances.
- c. If the oral report has been received within 24 hours, the noncompliance has been corrected, and the noncompliance did not endanger health or the environment, the Department shall waive the written report.
- d. In accordance with Section 403.077, F.S., unauthorized releases or spills reportable to the State Watch Office pursuant to subparagraph (b)1. above shall also be reported to the Department within 24 hours from the time the permittee becomes aware of the discharge. The permittee shall provide to the Department information reported to the State Watch Office. Notice of unauthorized releases or spills may be provided to the Department through the Department's Public Notice of Pollution web page at <https://floridadep.gov/pollutionnotice> or by reporting electronically using the Department's Business Portal at <https://www.fldepportal.com/go/> (via "Submit" followed by "Report" or "Registration/Notification").

- (1) If, after providing notice pursuant to paragraph (d) above, the permittee determines that a reportable unauthorized release or spill did not occur or that an amendment to the notice is warranted, the permittee may submit a letter to the Department documenting such determination at pollution.notice@floridadep.gov.
- (2) If, after providing notice pursuant to paragraph (d) above, the permittee discovers that a reportable unauthorized release or spill has migrated outside the property boundaries of the installation, the permittee must provide an additional notice to the Department that the release has migrated outside the property boundaries within 24 hours after its discovery of the migration outside of the property boundaries.
- e. Unless discharged to surface waters, a spill, release, discharge, upset or bypass involving reclaimed water meeting Part III or Part V treatment standards under Chapter 62-610, F.A.C., shall not be considered to endanger health or the environment and shall be reported under subsection (21) of this permit.

[62-620.610(20) and 62-620.100(3)]

21. The permittee shall report all instances of noncompliance not reported under Permit Conditions IX. 17, 18 or 19 of this permit at the time monitoring reports are submitted. This report shall contain the same information required by Permit Condition IX.20 of this permit. *[62-620.610(21)]*

22. Bypass Provisions.

- a. "Bypass" means the intentional diversion of waste streams from any portion of a treatment works.
- b. Bypass is prohibited, and the Department may take enforcement action against a permittee for bypass, unless the permittee affirmatively demonstrates that:
 - (1) Bypass was unavoidable to prevent loss of life, personal injury, or severe property damage; and
 - (2) There were no feasible alternatives to the bypass, such as the use of auxiliary treatment facilities, retention of untreated wastes, or maintenance during normal periods of equipment downtime. This condition is not satisfied if adequate back-up equipment should have been installed in the exercise of reasonable engineering judgment to prevent a bypass which occurred during normal periods of equipment downtime or preventive maintenance; and
 - (3) The permittee submitted notices as required under Permit Condition IX. 22. c. of this permit.
- c. If the permittee knows in advance of the need for a bypass, it shall submit prior notice to the Department, if possible at least 10 days before the date of the bypass. The permittee shall submit notice of an unanticipated bypass within 24 hours of learning about the bypass as required in Permit Condition IX. 20. of this permit. A notice shall include a description of the bypass and its cause; the period of the bypass, including exact dates and times; if the bypass has not been corrected, the anticipated time it is expected to continue; and the steps taken or planned to reduce, eliminate, and prevent recurrence of the bypass.
- d. The Department shall approve an anticipated bypass, after considering its adverse effect, if the permittee demonstrates that it will meet the three conditions listed in Permit Condition IX. 22. b.(1) through (3) of this permit.
- e. A permittee may allow any bypass to occur which does not cause reclaimed water or effluent limitations to be exceeded if it is for essential maintenance to assure efficient operation. These bypasses are not subject to the provisions of Permit Condition IX. 22. b. through d. of this permit.

[62-620.610(22)]

23. Upset Provisions.

- a. "Upset" means an exceptional incident in which there is unintentional and temporary noncompliance with technology-based effluent limitations because of factors beyond the reasonable control of the permittee.
 - (1) An upset does not include noncompliance caused by operational error, improperly designed treatment facilities, inadequate treatment facilities, lack of preventive maintenance, careless or improper operation.

- (2) An upset constitutes an affirmative defense to an action brought for noncompliance with technology based permit effluent limitations if the requirements of upset provisions of Rule 62-620.610, F.A.C., are met.
- b. A permittee who wishes to establish the affirmative defense of upset shall demonstrate, through properly signed contemporaneous operating logs, or other relevant evidence that:
 - (1) An upset occurred and that the permittee can identify the cause(s) of the upset;
 - (2) The permitted facility was at the time being properly operated;
 - (3) The permittee submitted notice of the upset as required in Permit Condition IX.20. of this permit; and
 - (4) The permittee complied with any remedial measures required under Permit Condition IX. 5. of this permit.
- c. In any enforcement proceeding, the burden of proof for establishing the occurrence of an upset rests with the permittee.
- d. Before an enforcement proceeding is instituted, no representation made during the Department review of a claim that noncompliance was caused by an upset is final agency action subject to judicial review.

[62-620.610(23)]

Executed in Pensacola, Florida.

STATE OF FLORIDA DEPARTMENT OF ENVIRONMENTAL PROTECTION



William A. Evans, P.E.

Water and Wastewater Permitting Manager

Attachment(s):

Site Location Map

Site Layout

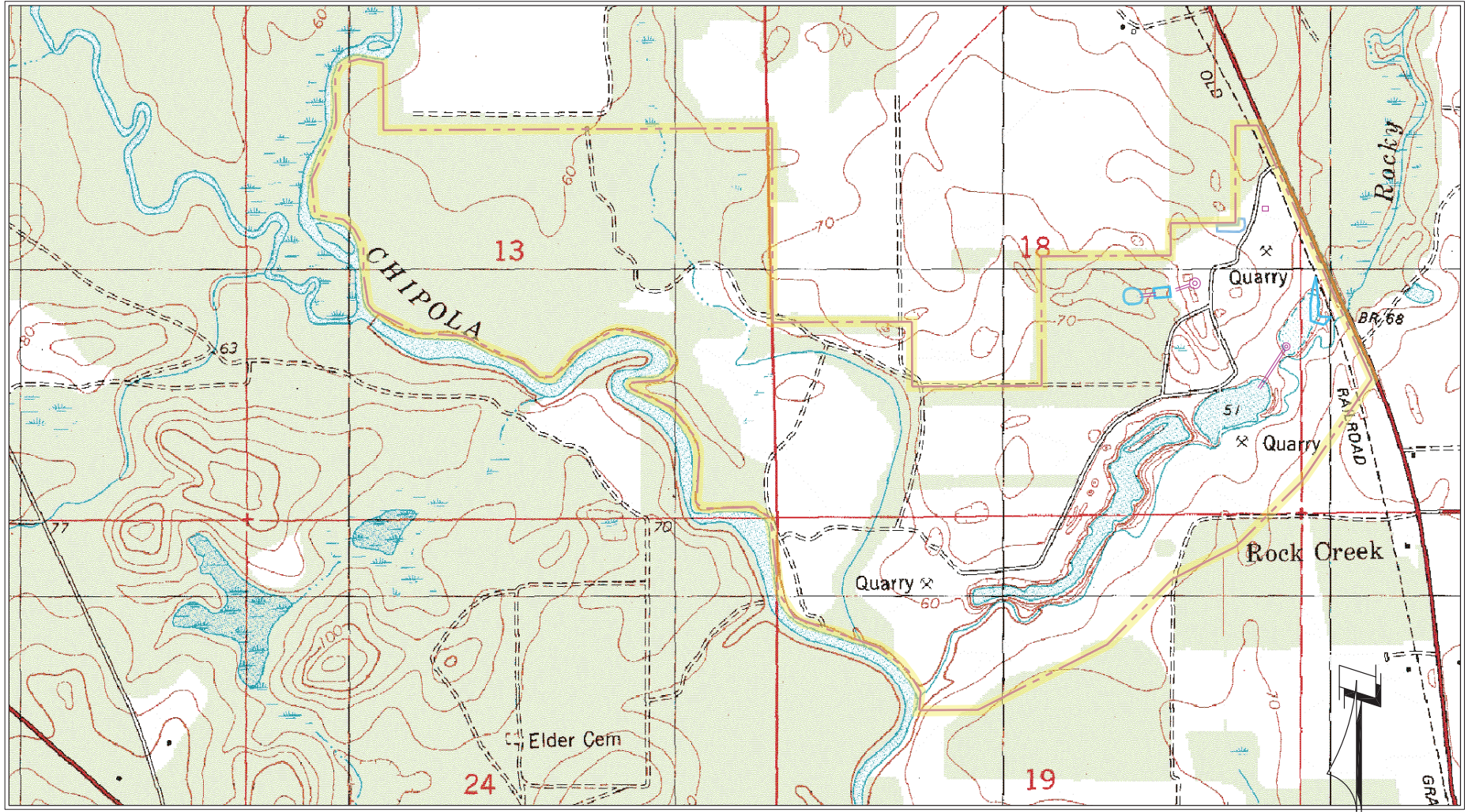
Process Flow Diagram

Discharge Monitoring Reports:

DMR Part A D001 Monthly

DMR Part B Daily

DMR Instructions



SCALE: 1" = 1000'
 LOCATION: Marianna, Florida
 SECTION: 18 & 19 TOWNSHIP: 3N RANGE: 9W
 13 3N 10W

COUNTY: Jackson
 OUTFALL #1
 LATITUDE: 30° 38' 50.24"
 LONGITUDE: 85° 10' 35.32"
 Oakdale, Florida Quadrangle

0 1000'
 SCALE

KEY	DATE	REVISIONS

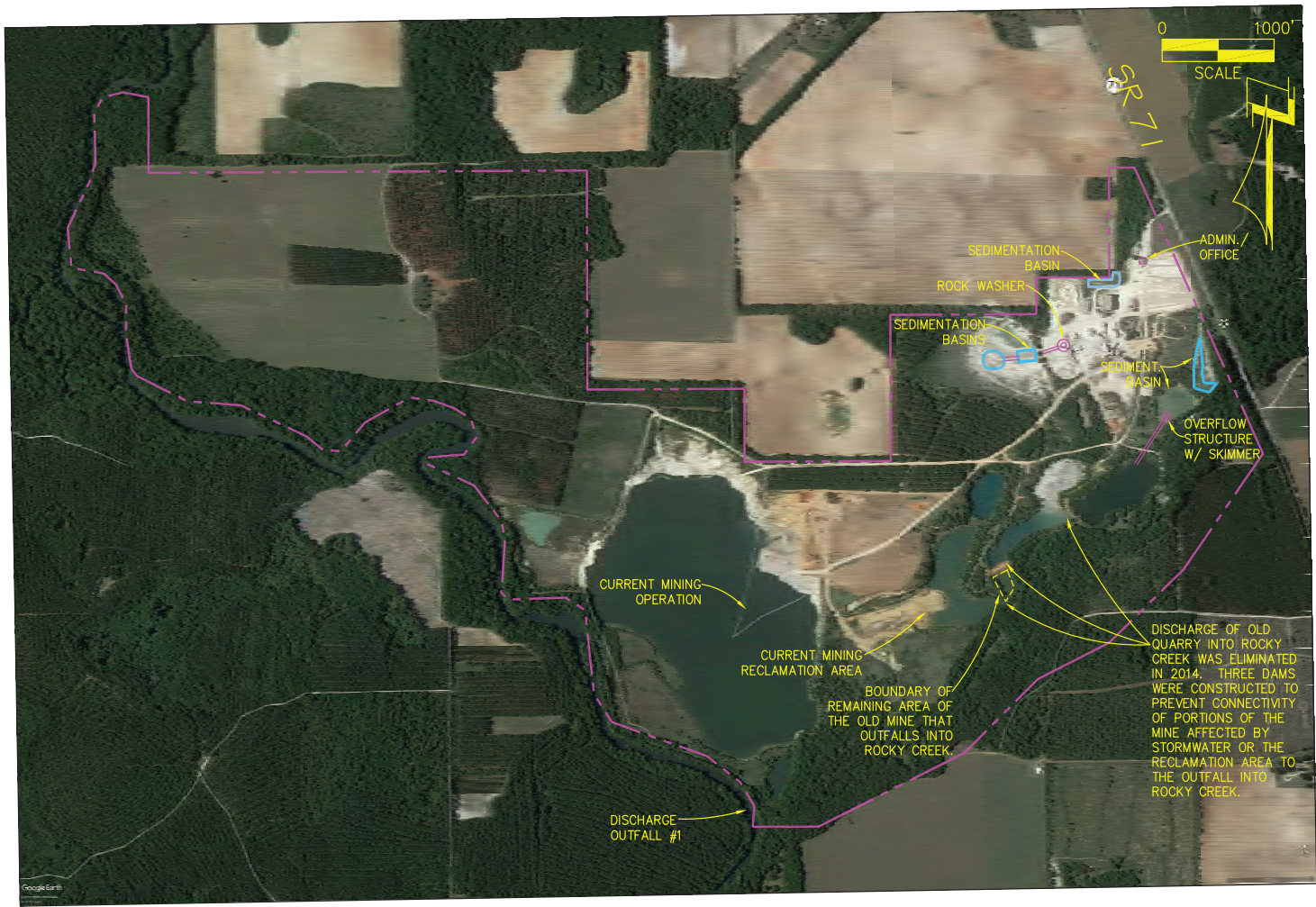
APPROVED:	
Project Manager	Date
Quality Control	Date

DAVID H. MELVIN, INC.
Consulting Engineers

MARIANNA 904/482-3045 TALLAHASSEE 904/671-7221

PROJECT	DOLOMITE, INC. INDUSTRIAL WASTEWATER PERMIT
SHEET TITLE	SITE MAP

CLIENT	DOLOMITE, INC. MARIANNA, FLORIDA
JOB NO.	DOL23IWP
SHEET NO.	1



SCALE: 1" = 1000'
LOCATION: Marianna, Florida
SECTION: 18 & 19 TOWNSHIP: 3N RANGE: 9W
13 3N 10W

COUNTY: Jackson
OUTFALL #1
LATITUDE: 30° 38' 50.24"
LONGITUDE: 85° 10' 35.32"
Oakdale, Florida Quadrangle

KEY	DATE	REVISIONS	APPROVED:
			Project Manager Date
			Quality Control Date



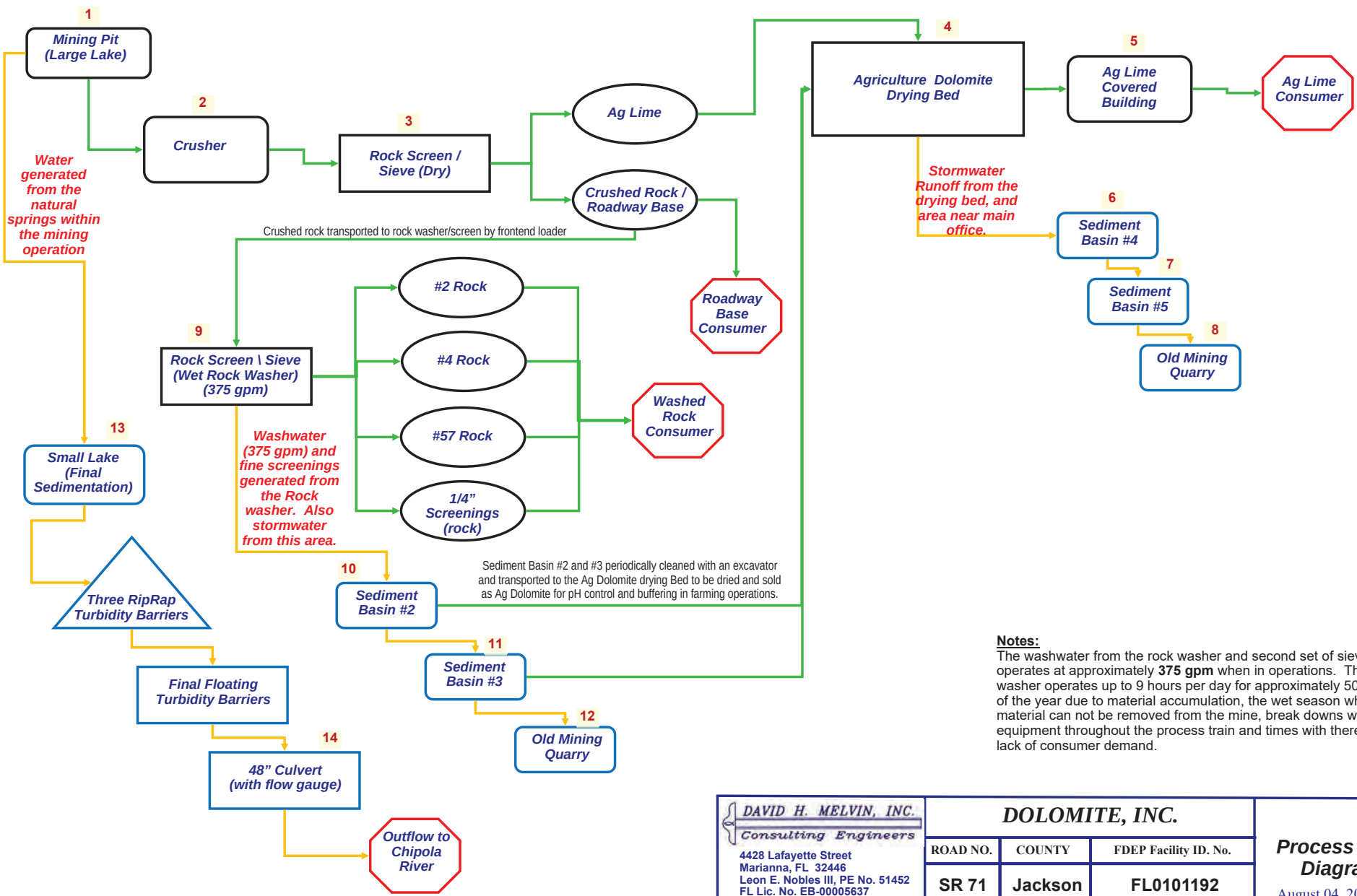
DAVID H. MELVIN, INC.
Consulting Engineers

MARIANNA 904/482-3045

TALLAHASSEE 904/671-7221

PROJECT DOLOMITE, INC.
INDUSTRIAL WASTEWATER PERMIT
SHEET TITLE SITE AERIAL

CLIENT DOLOMITE, INC.
MARIANNA, FLORIDA
JOB NO. DOL23IWP
SHEET NO. 2



Notes:
The washwater from the rock washer and second set of sieves operates at approximately **375 gpm** when in operations. The rock washer operates up to 9 hours per day for approximately 50 percent of the year due to material accumulation, the wet season when material can not be removed from the mine, break downs with equipment throughout the process train and times with there is a lack of consumer demand.

DAVID H. MELVIN, INC. Consulting Engineers 4428 Lafayette Street Marianna, FL 32446 Leon E. Nobles III, PE No. 51452 FL Lic. No. EB-00005637	DOLOMITE, INC.			Process Flow Diagram August 04, 2023
	ROAD NO.	COUNTY	FDEP Facility ID. No.	
	SR 71	Jackson	FL0101192	

DEPARTMENT OF ENVIRONMENTAL PROTECTION DISCHARGE MONITORING REPORT - PART A

When Completed submit this report to: <https://www.fldepportal.com/go/>

PERMITTEE NAME: Dolomite, Inc.
MAILING ADDRESS: PO Box 1568
Marianna, Florida 32447- 5568

FACILITY: Dolomite, Inc
LOCATION: 1321 Highway 71
Marianna, FL 32448-5399

COUNTY: Jackson
OFFICE: Northwest District

PERMIT NUMBER: FL0101192-009-IW3S

LIMIT: Final
CLASS SIZE: MI
MONITORING GROUP NUMBER: D-001
MONITORING GROUP DESCRIPTION: discharge point

REPORT FREQUENCY: Monthly
PROGRAM: Industrial

RE-SUBMITTED DMR: ☐
NO DISCHARGE FROM SITE: ☐
MONITORING PERIOD From: _____ To: _____

Parameter		Quantity or Loading		Units	Quality or Concentration			Units	No. Ex.	Frequency of Analysis	Sample Type
Flow	Sample Measurement										
PARM Code 50050 1 Mon. Site No. EFF-01	Permit Requirement		Report (Mo.Avg.)	MGD					0	Monthly	Calculated
Turbidity (effluent)	Sample Measurement										
PARM Code 00070 1 Mon. Site No. EFF-01	Permit Requirement					Report (Max.)	NTU	0	Monthly	Grab	
Turbidity (background)	Sample Measurement										
PARM Code 00070 5 Mon. Site No. SWB-01	Permit Requirement					Report (Max.)	NTU	0	Monthly	Grab	
Turbidity (calculated limit)	Sample Measurement										
PARM Code 00070 P Mon. Site No. EFF-01	Permit Requirement					Report (Max.)	NTU	0	Monthly	Calculated	
Turbidity (effluent minus calculated limit)	Sample Measurement										
PARM Code 00070 Q Mon. Site No. EFF-01	Permit Requirement					0.0 (Max.)	NTU		Monthly	Calculated	
Solids, Total Suspended	Sample Measurement										
PARM Code 00530 1 Mon. Site No. EFF-01	Permit Requirement					20.0 (Day.Max.)	mg/L		Monthly	Grab	

I certify under penalty of law that this document and all attachments were prepared under my direction or supervision in accordance with a system designed to assure that qualified personnel properly gather and evaluate the information submitted. Based on my inquiry of the person or persons who manage the system, or those persons directly responsible for gathering the information, the information submitted is, to the best of my knowledge and belief, true, accurate, and complete. I am aware that there are significant penalties for submitting false information, including the possibility of fine and imprisonment for knowing violations.

NAME/TITLE OF PRINCIPAL EXECUTIVE OFFICER OR AUTHORIZED AGENT	SIGNATURE OF PRINCIPAL EXECUTIVE OFFICER OR AUTHORIZED AGENT	TELEPHONE NO	DATE (mm/dd/yyyy)

COMMENT AND EXPLANATION OF ANY VIOLATIONS (Reference all attachments here):

DISCHARGE MONITORING REPORT - PART A (Continued)

FACILITY: Dolomite, Inc

MONITORING GROUP NUMBER: D-001

PERMIT NUMBER: FL0101192-009-IW3S

MONITORING PERIOD From: To:

Parameter		Quantity or Loading		Units	Quality or Concentration			Units	No. Ex.	Frequency of Analysis	Sample Type
pH	Sample Measurement										
PARM Code 00400 1 Mon. Site No. EFF-01	Permit Requirement				6.0 (Day.Min.)		8.5 (Day.Max.)	s.u.		Monthly	Grab

DAILY SAMPLE RESULTS - PART B

Permit Number: FL0101192-009-IW3S Facility: Dolomite, Inc
 Monitoring Period From: _____ To: _____

	Flow MGD	Solids, Total Suspended mg/L	Turbidity NTU	Turbidity (background) NTU	Turbidity (calculated limit = 29 NTU + background) NTU	Turbidity (effluent minus calculated limit) NTU	pH s.u.
Code	50050	00530	00070	00070	00070	00070	00400
Mon. Site	EFF-01	EFF-01	EFF-01	SWB-01	EFF-01	EFF-01	EFF-01
1							
2							
3							
4							
5							
6							
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20							
21							
22							
23							
24							
25							
26							
27							
28							
29							
30							
31							
Total							
Mo. Avg.							

PLANT STAFFING:

Day Shift Operator	Class: _____	Certificate No: _____	Name: _____
Evening Shift Operator	Class: _____	Certificate No: _____	Name: _____
Night Shift Operator	Class: _____	Certificate No: _____	Name: _____
Lead Operator	Class: _____	Certificate No: _____	Name: _____

INSTRUCTIONS FOR COMPLETING THE WASTEWATER DISCHARGE MONITORING REPORT

Read these instructions before completing the DMR. Hard copies and/or electronic copies of the required parts of the DMR were provided with the permit. All required information shall be completed in full and typed or printed in ink. A signed, original DMR shall be mailed to the address printed on the DMR by the 28th of the month following the monitoring period. Facilities who submit their DMR(s) electronically through eDMR do not need to submit a hardcopy DMR. The DMR shall not be submitted before the end of the monitoring period.

The DMR consists of three parts--A, B, and D--all of which may or may not be applicable to every facility. Facilities may have one or more Part A's for reporting effluent or reclaimed water data. All domestic wastewater facilities will have a Part B for reporting daily sample results. Part D is used for reporting ground water monitoring well data.

When results are not available, the following codes should be used on parts A and D of the DMR and an explanation provided where appropriate. Note: Codes used on Part B for raw data are different.

CODE	DESCRIPTION/INSTRUCTIONS
ANC	Analysis not conducted.
DRY	Dry Well
FLD	Flood disaster.
IFS	Insufficient flow for sampling.
LS	Lost sample.
MNR	Monitoring not required this period.

CODE	DESCRIPTION/INSTRUCTIONS
NOD	No discharge from/to site.
OPS	Operations were shutdown so no sample could be taken.
OTH	Other. Please enter an explanation of why monitoring data were not available.
SEF	Sampling equipment failure.

When reporting analytical results that fall below a laboratory's reported method detection limits or practical quantification limits, the following instructions should be used, unless indicated otherwise in the permit or on the DMR:

1. Results greater than or equal to the PQL shall be reported as the measured quantity.
2. Results less than the PQL and greater than or equal to the MDL shall be reported as the laboratory's MDL value. These values shall be deemed equal to the MDL when necessary to calculate an average for that parameter and when determining compliance with permit limits.
3. Results less than the MDL shall be reported by entering a less than sign ("<") followed by the laboratory's MDL value, e.g. < 0.001. A value of one-half the MDL or one-half the effluent limit, whichever is lower, shall be used for that sample when necessary to calculate an average for that parameter. Values less than the MDL are considered to demonstrate compliance with an effluent limitation.

PART A -DISCHARGE MONITORING REPORT (DMR)

Part A of the DMR is comprised of one or more sections, each having its own header information. Facility information is preprinted in the header as well as the monitoring group number, whether the limits and monitoring requirements are interim or final, and the required submittal frequency (e.g. monthly, annually, quarterly, etc.). Submit Part A based on the required reporting frequency in the header and the instructions shown in the permit. The following should be completed by the permittee or authorized representative:

Resubmitted DMR: Check this box if this DMR is being re-submitted because there was information missing from or information that needed correction on a previously submitted DMR. The information that is being revised should be clearly noted on the re-submitted DMR (e.g. highlight, circle, etc.)

No Discharge From Site: Check this box if no discharge occurs and, as a result, there are no data or codes to be entered for all of the parameters on the DMR for the entire monitoring group number; however, if the monitoring group includes other monitoring locations (e.g., influent sampling), the "NOD" code should be used to individually denote those parameters for which there was no discharge.

Monitoring Period: Enter the month, day, and year for the first and last day of the monitoring period (i.e. the month, the quarter, the year, etc.) during which the data on this report were collected and analyzed.

Sample Measurement: Before filling in sample measurements in the table, check to see that the data collected correspond to the limit indicated on the DMR (i.e. interim or final) and that the data correspond to the monitoring group number in the header. Enter the data or calculated results for each parameter on this row in the non-shaded area above the limit. Be sure the result being entered corresponds to the appropriate statistical base code (e.g. annual average, monthly average, single sample maximum, etc.) and units. Data qualifier codes are not to be reported on Part A.

No. Ex.: Enter the number of sample measurements during the monitoring period that exceeded the permit limit for each parameter in the non-shaded area. If none, enter zero.

Frequency of Analysis: The shaded areas in this column contain the minimum number of times the measurement is required to be made according to the permit. Enter the actual number of times the measurement was made in the space above the shaded area.

Sample Type: The shaded areas in this column contain the type of sample (e.g. grab, composite, continuous) required by the permit. Enter the actual sample type that was taken in the space above the shaded area.

Signature: This report must be signed in accordance with Rule 62-620.305, F.A.C. Type or print the name and title of the signing official. Include the telephone number where the official may be reached in the event there are questions concerning this report. Enter the date when the report is signed.

Comment and Explanation of Any Violations: Use this area to explain any exceedances, any upset or by-pass events, or other items which require explanation. If more space is needed, reference all attachments in this area.

PART B - DAILY SAMPLE RESULTS

Monitoring Period: Enter the month, day, and year for the first and last day of the monitoring period (i.e. the month, the quarter, the year, etc.) during which the data on this report were collected and analyzed.

Daily Monitoring Results: Transfer all analytical data from your facility's laboratory or a contract laboratory's data sheets for all day(s) that samples were collected. Record the data in the units indicated. Table 1 in Chapter 62-160, F.A.C., contains a complete list of all the data qualifier codes that your laboratory may use when reporting analytical results. However, when transferring numerical results onto Part B of the DMR, only the following data qualifier codes should be used and an explanation provided where appropriate.

CODE	DESCRIPTION/INSTRUCTIONS
<	The compound was analyzed for but not detected.
A	Value reported is the mean (average) of two or more determinations.
J	Estimated value, value not accurate.
Q	Sample held beyond the actual holding time.
Y	Laboratory analysis was from an unpreserved or improperly preserved sample.

To calculate the monthly average, add each reported value to get a total. For flow, divide this total by the number of days in the month. For all other parameters, divide the total by the number of observations.

Plant Staffing: List the name, certificate number, and class of all state certified operators operating the facility during the monitoring period. Use additional sheets as necessary.

PART D - GROUND WATER MONITORING REPORT

Monitoring Period: Enter the month, day, and year for the first and last day of the monitoring period (i.e. the month, the quarter, the year, etc.) during which the data on this report were collected and analyzed.

Date Sample Obtained: Enter the date the sample was taken. Also, check whether or not the well was purged before sampling.

Time Sample Obtained: Enter the time the sample was taken.

Sample Measurement: Record the results of the analysis. If the result was below the minimum detection limit, indicate that. Data qualifier codes are not to be reported on Part D.

Detection Limits: Record the detection limits of the analytical methods used.

Analysis Method: Indicate the analytical method used. Record the method number from Chapter 62-160 or Chapter 62-601, F.A.C., or from other sources.

Sampling Equipment Used: Indicate the procedure used to collect the sample (e.g. airlift, bucket/bailer, centrifugal pump, etc.)

Samples Filtered: Indicate whether the sample obtained was filtered by laboratory (L), filtered in field (F), or unfiltered (N).

Signature: This report must be signed in accordance with Rule 62-620.305, F.A.C. Type or print the name and title of the signing official. Include the telephone number where the official may be reached in the event there are questions concerning this report. Enter the date when the report is signed.

Comments and Explanation: Use this space to make any comments on or explanations of results that are unexpected. If more space is needed, reference all attachments in this area.

SPECIAL INSTRUCTIONS FOR LIMITED WET WEATHER DISCHARGES

Flow (Limited Wet Weather Discharge): Enter the measured average flow rate during the period of discharge or divide gallons discharged by duration of discharge (converted into days). Record in million gallons per day (MGD).

Flow (Upstream): Enter the average flow rate in the receiving stream upstream from the point of discharge for the period of discharge. The average flow rate can be calculated based on two measurements; one made at the start and one made at the end of the discharge period. Measurements are to be made at the upstream gauging station described in the permit.

Actual Stream Dilution Ratio: To calculate the Actual Stream Dilution Ratio, divide the average upstream flow rate by the average discharge flow rate. Enter the Actual Stream Dilution Ratio accurate to the nearest 0.1.

No. of Days the SDF > Stream Dilution Ratio: For each day of discharge, compare the minimum Stream Dilution Factor (SDF) from the permit to the calculated Stream Dilution Ratio. On Part B of the DMR, enter an asterisk (*) if the SDF is greater than the Stream Dilution Ratio on any day of discharge. On Part A of the DMR, add up the days with an "*" and record the total number of days the Stream Dilution Factor was greater than the Stream Dilution Ratio.

CBOD₅: Enter the average CBOD₅ of the reclaimed water discharged during the period shown in duration of discharge.

TKN: Enter the average TKN of the reclaimed water discharged during the period shown in duration of discharge.

Actual Rainfall: Enter the actual rainfall for each day on Part B. Enter the actual cumulative rainfall to date for this calendar year and the actual total monthly rainfall on Part A. The cumulative rainfall to date for this calendar year is the total amount of rain, in inches, that has been recorded since January 1 of the current year through the month for which this DMR contains data.

Rainfall During Average Rainfall Year: On Part A, enter the total monthly rainfall during the average rainfall year and the cumulative rainfall for the average rainfall year. The cumulative rainfall for the average rainfall year is the amount of rain, in inches, which fell during the average rainfall year from January through the month for which this DMR contains data.

No. of Days LWWD Activated During Calendar Year: Enter the cumulative number of days that the limited wet weather discharge was activated since January 1 of the current year.

Reason for Discharge: Attach to the DMR a brief explanation of the factors contributing to the need to activate the limited wet weather discharge.

**FACT SHEET
FOR
STATE OF FLORIDA INDUSTRIAL WASTEWATER FACILITY PERMIT**

PERMIT NUMBER: FL0101192-009 (Minor)
FACILITY NAME: Dolomite, Inc
FACILITY LOCATION: 1321 Highway 71, Marianna, FL 32448-5399
Jackson County
NAME OF PERMITTEE: Dolomite, Inc.
PERMIT WRITER: Savannah Cowen

1. SUMMARY OF APPLICATION

a. Chronology of Application

Application Number: FL0101192-009-IW3S
Application Submittal Date: August 30, 2023

b. Type of Facility

Dolomite, Inc. mines dolomite, a magnesia-rich sedimentary rock resembling limestone. The mining operation consists of fracturing the subsurface dolomite by boring and blasting with explosive charges. The rock is then excavated to a depth of between 40-50 feet with draglines and stockpiled adjacent to the man-made lake to allow the material to dewater. The dolomite material is then loaded on all-terrain dump trucks and transported approximately 2,200 feet to a processing area, where the rock is then dry screened into either crushed rock or agricultural lime. Crushed rock is then screened through a wet rock washer and classified into various sizes. Washwater, fine screenings, and stormwater from the washing operation is collected into two sediment basins and finally to an old mining quarry with no discharge. Agricultural lime is taken to a drying bed. Stormwater runoff from the drying bed is collected into two sediment basins and finally to an old mining quarry with no discharge.

Mining operations within the man-made lake result in an industrial wastewater discharge. The attached site aerial map shows the locations of mining operations, sedimentation basins, overflow structure and outfall.

SIC Code: 1411 - Dimension Stone Mining and Quarrying

c. Facility Capacity

Existing Permitted Capacity:	9.7 MGD Annual Average Daily Flow
Proposed Increase in Permitted Capacity:	0 MGD Annual Average Daily Flow
Proposed Total Permitted Capacity:	9.7 MGD Annual Average Daily Flow

d. Description of Wastewater Treatment

The man-made lake flows in a towards the southeast through a narrow channel into a small lake that serves as a final sedimentation basin. The water flows from this basin over three rip-rap turbidity barriers and through a floating turbidity barrier. The treated water flows through a 48-inch culvert and discharges into the Chipola River (WBID 51D), a Class III freshwater and an Outstanding Florida Water (OFW).

Following crushing and classification, the rock is washed in an area west of the administrative building. The process wastewater from this washing operation is collected in two sediment basins for reuse in the rock washing process. Sediment is periodically removed from these ponds, and it is subsequently dried and sold as agricultural lime. Washwater, fine screenings, and stormwater from the washing operation is collected into two sediment basins and finally to an old mining quarry with no discharge. Agricultural lime is taken to a drying bed. Stormwater runoff from the drying bed is collected into two sediment basins and finally to an old mining quarry with no discharge.

e. Description of Effluent Disposal and Land Application Sites (as reported by applicant)

An existing, 9.7 MGD annual average daily flow (AADF), discharge of wastewater from the man-made lake to the Chipola River (WBID 51D), a Class III freshwater and an Outstanding Florida Water (OFW), via Outfall D-001. The outfall is a 48-inch reinforced concrete pipe (RCP) located approximately at latitude 30° 38' 50.24" N, longitude 85° 10' 35.32" W.

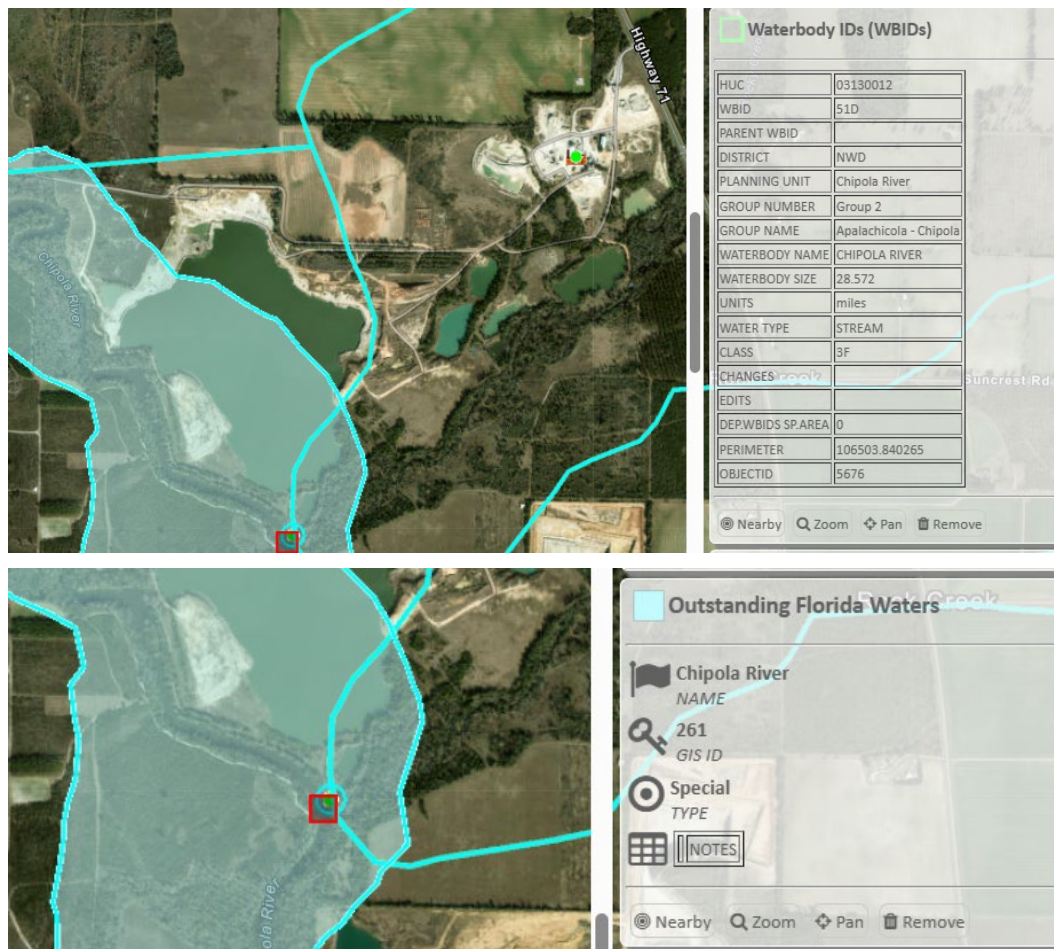
Pollutants which are present in significant quantities or which are subject to permit limitations are as follows:

Parameter	Units	Max/Min	Reported Value	Statistical Basis
Turbidity	NTU	Max	6.6 4.1	Single Sample Annual Average
Total Suspended Solids	mg/L	Max	5.6 4.0	Daily Maximum Annual Average
pH	s.u.	Max	8.2	Daily Average

2. SUMMARY OF SURFACE WATER DISCHARGE

This facility discharges to the Chipola River (WBID 51D), a Class III freshwater and an Outstanding Florida Water (OFW), via Outfall D-001. However, it does not have a new or expanded discharge to surface waters.

The Department does not anticipate adverse impacts on threatened or endangered species as a result of permit issuance.



3. BASIS FOR PERMIT LIMITATIONS AND MONITORING REQUIREMENTS

This facility is authorized to discharge process wastewater and stormwater from Outfall D-001 to the Chipola River (WBID 51D) based on the following:

Parameter	Units	Max/Min	Limit	Statistical Basis	Rationale
Flow	MGD	Max	Report	Monthly Average	62-620.320(6), F.A.C.
Turbidity	NTU	Max	Calculated	Single Sample	62-302.530, F.A.C.
Turbidity (background)	NTU	Max	Report	Single Sample	62-302.530, F.A.C.
Solids, Total Suspended	mg/L	Max	20.0	Daily Maximum	62-620.320(6)
pH	s.u.	Min	6.0	Daily Minimum	62-302.530, F.A.C and 40 CFR 436.22
pH	s.u.	Max	8.5	Daily Maximum	

The limit for "Turbidity" shall be calculated as follows:

$$\text{Limit} = \text{Background Turbidity} + 29 \text{ NTU } [62-302.530(69)]$$

When a permit is renewed or reissued pursuant to Rule 62-620.325 or 62-620.335, F.A.C., interim effluent limitations, standards or conditions shall be at least as stringent as the final effluent limitations, standards, or conditions in the previous permit unless the circumstances on which the previous permit was based have materially and substantially changed since the time the permit was issued and would constitute cause for permit revision or revocation and reissuance. Therefore, the total suspended solids limit remains at 20 mg/L as a maximum. [62-620.320(1)(o) F.A.C.]

Technology based effluent limitations (TBELs) are minimum waste treatment requirements based on treatment technologies for reducing discharges of pollutants into receiving waters. TBELs are established, for industrial wastewater facilities, by state rule in Chapters 62-620, 62-660, and 62-670, F.A.C.; they may also be developed in accordance with best professional judgment. TBELs are included in the permit for the following pollutants of concern:

Parameter	Units	Monitoring Location	Monitoring Group
Solids, Total Suspended	mg/L	EFF-01	D-001
pH	s.u.	EFF-01	D-001

Water quality based effluent limitations (WQBELs) are effluent limitations, which may be more stringent than a technology based effluent limitation, that have been determined necessary by the Department to ensure that water quality standards in a receiving body of water will not be violated. WQBELs are developed in accordance with Chapter 62-650, F.A.C., and are based on the characteristics of the discharge, the receiving water characteristics, and the criteria and standards in Chapters 62-4, 62-302, and the 62-600 series, F.A.C.; they may also be developed based on Total Maximum Daily Load (TMDL) allocations adopted in Chapter 62-304, F.A.C., or allocations developed as part of a Basin Management Action Plan (BMAP) or a Reasonable Assurance Plan (RAP). WQBELs are included in the permit for the following pollutants of concern:

Parameter	Units	Monitoring Location	Monitoring Group
Turbidity	NTU	EFF-01	D-001
Turbidity (background)	NTU	SWB-01	D-001

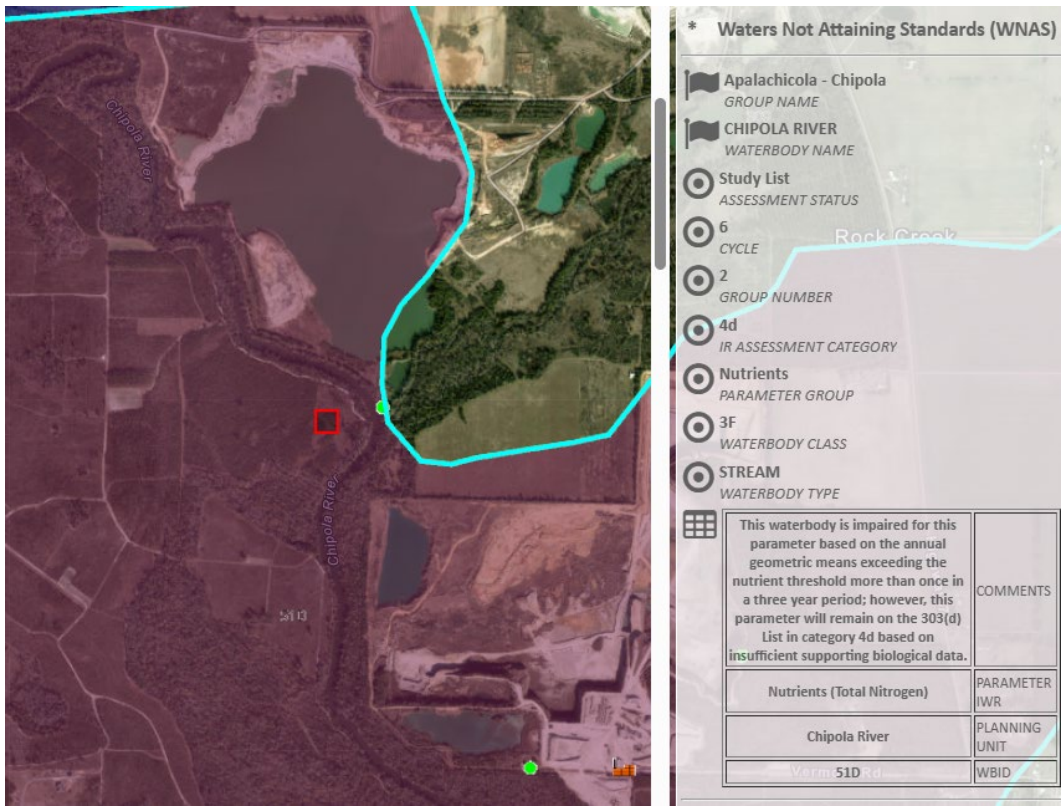
Pollutants of concern were identified for WQBEL development based on an evaluation of all available information, including a characterization of the pollutants that may be discharged, fifth year inspection data, the sources of pollutants, existing controls on pollutants, available dilution, background pollutant levels in the receiving waters, and the toxicity of pollutants.

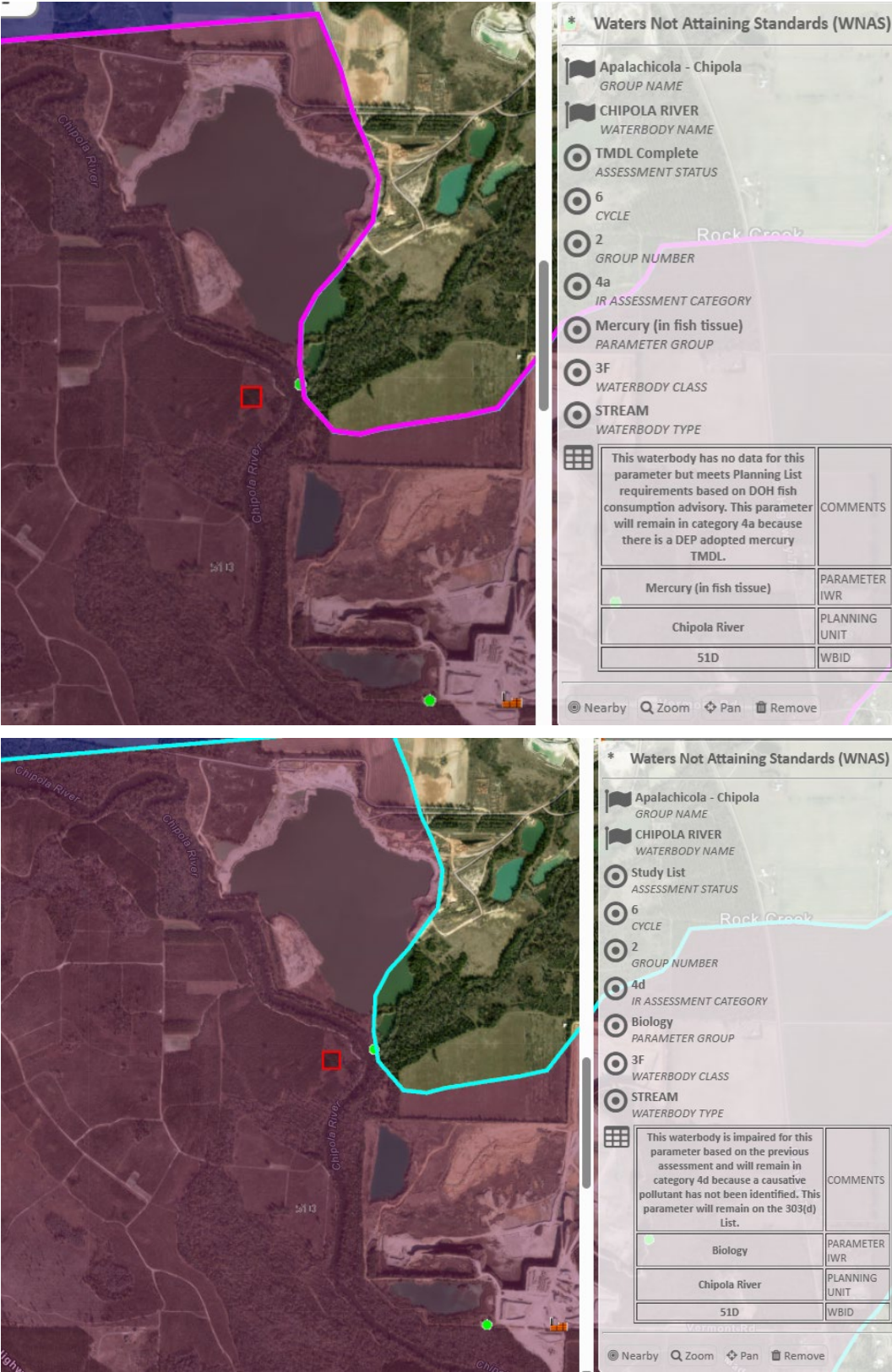
Unless otherwise noted, effluent limitations were developed by applying water quality criteria at the end of pipe.

This facility has provided reasonable assurance that the discharge will not adversely affect the designated use of the receiving water. Effluent characterization of the discharge and historical discharge monitoring results have been evaluated in accordance with the Department's reasonable assurance procedures to ensure that no limits other than those included in this permit are needed to maintain Florida water quality standards. The technical and scientific work that was conducted in developing the effluent permit limitations is attached to this fact sheet.

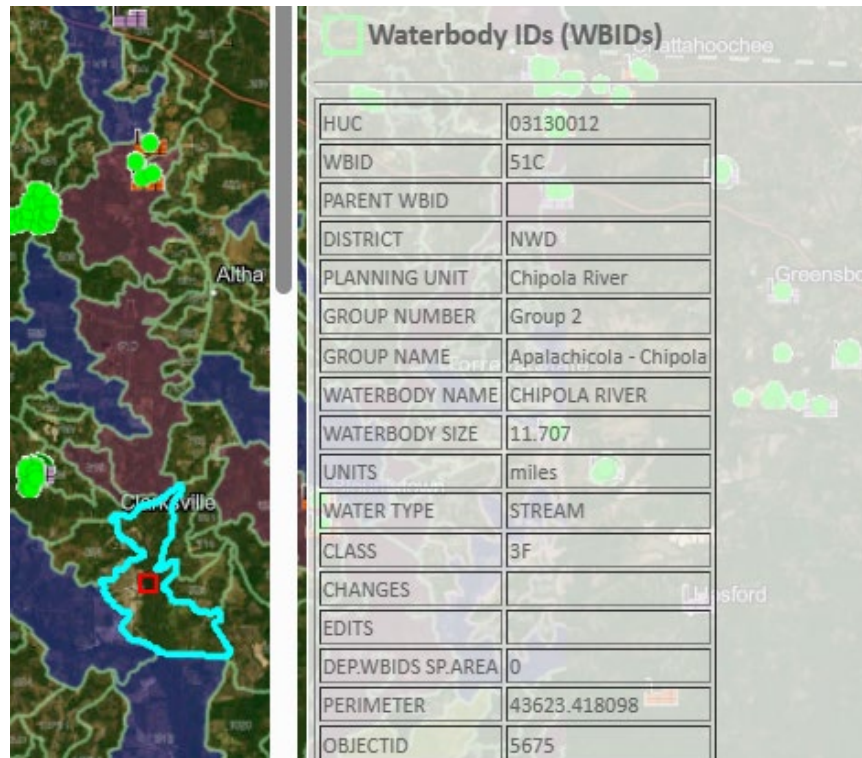
4. IMPAIRMENT STATUS OF RECEIVING WATERS

The receiving water body for this facility is listed on the 303D list as impaired Nutrients (Total Nitrogen), Mercury (in fish tissue), and Biology. The statewide mercury TMDL addresses this impairment. Chipola River (WBID 51D) is on the 4d Study List for biology due to failed bioassessments, and a causative pollutant has not been identified. The facility is not expected to be a source of nutrient impairments. Please see attached for the Level I WQBEL.





Under Section 303(d) of the Clean Water Act, the Department is required to submit lists of impaired waters to EPA. The direct and downstream receiving water body for this facility's discharge to surface waters are not listed on the 303(d) list.



5. DISCUSSION OF CHANGES TO PERMIT LIMITATIONS

The current wastewater permit for this facility FL0101192-008-IW3S expired on November 26, 2023. The application was not received timely (180 days prior to permit expiration), however, it was made complete before expiration. Therefore, the existing permit remains in effect until issuance of the renewal application.

6. INDUSTRIAL SLUDGE MANAGEMENT REQUIREMENTS

This section is not applicable to this facility

7. GROUND WATER MONITORING REQUIREMENTS

This section is not applicable to this facility.

8. PERMIT SCHEDULES

A schedule is not included in the wastewater permit.

9. BEST MANAGEMENT PRACTICES/STORMWATER POLLUTION PREVENTION PLANS

Per Section VII of this permit, a Best Management Practices (BMP) Plan is required for the facility, pursuant to Rule 62-620.100(3)(m), F.A.C., and 40 CFR Part 122.44(k). The plan provides a facility-specific approach for the minimizing of pollutant discharge from ancillary activities.

10. ADMINISTRATIVE ORDERS (AO) AND CONSENT ORDERS (CO)

This permit is not accompanied by an AO, and the permittee has not entered into a CO with the Department that affects this permit.

11. REQUESTED VARIANCES OR ALTERNATIVES TO REQUIRED STANDARDS

No variances were requested for this facility.

12. THE ADMINISTRATIVE RECORD

The administrative record including application, draft permit, fact sheet, comments received and additional information is available for public inspection during normal business hours at the location specified in item 14. Copies will be provided at a minimal charge per page. The files are available electronically from the Department's Electronic Document Search Portal using Application number FL0101192009,
<http://prodenv.dep.state.fl.us/DepNexus/public/searchPortal>

13. PROPOSED SCHEDULE FOR PERMIT ISSUANCE

Draft Permit Notice	September 29, 2025
Public Comment Period:	Beginning: September 29, 2025
	Ending: October 29, 2025
Notice of Permit Issuance	October 30, 2025

14. DEP CONTACT

Additional information concerning the permit and proposed schedule for permit issuance may be obtained during normal business hours from:

Savannah Cowen
Engineering Specialist III
Northwest District Office

160 W. Government Street
Suite 308
Pensacola, FL 32502-5740

Telephone No.: 850-595-0640
Email: Savannah.Cowen@FloridaDEP.gov



FLORIDA DEPARTMENT OF Environmental Protection

Northwest District
160 W. Government Street, Suite 308
Pensacola, FL 32502

Ron DeSantis
Governor

Jay Collins
Lt. Governor

Alexis A. Lambert
Secretary

Memorandum

TO: DEP File No. FL0101192-009-IW3S
FROM: Savannah Cowen
SUBJECT: Level I WQBEL, Dolomite, Inc.
DATE: October 29, 2025

The Level I WQBEL process applies to the renewal of existing permits when data are sufficient to determine that the receiving waters currently meet standards and are expected to continue to meet standards with the discharge. [62-650.400(1), F.A.C.]

1. Facility Name and Receiving Waters:

Dolomite, Inc. is located at 1321 Highway 71 in Marianna, Florida 32448 in Jackson County. Dolomite, Inc. applied to the Florida Department of Environmental Protection (DEP) on November 26, 2023, to renew their permit for Dolomite, Inc., an existing dolomite mining operation. Mining operations within a man-made lake results in an industrial wastewater discharge.

Dolomite, Inc. discharges effluent through a 48-inch reinforced concrete pipe (RCP) culvert, known as D-001, to Chipola River (WBID 51D), a Class III freshwater and an Outstanding Florida Water (OFW). The point of discharge is located approximately at latitude 30° 38' 50.24'', longitude 85° 10' 35.32''.

2. Impairment Status of Receiving Waters:

The immediate receiving water, Chipola River (WBID 51D), is impaired for Nutrients (Total Nitrogen), Mercury (in fish tissue), and Biology. Impairments for both Total Nitrogen and Biology are on the 4d Study List due to failed bioassessments, where a causative pollutant has not been identified.

Oxygen demanding substances and sources of nutrients, including nitrogen containing compounds, are not expected to be parameters of concern and are not expected to contribute to the receiving waterbodies impairment.

The downstream receiving water, Chipola River (WBID 51C), is not impaired for any parameters.

3. Total Maximum Daily Loads (TMDL) for Receiving Waters:

A TMDL is a regulatory term in the U.S. Clean Water Act, describing a plan for restoring impaired waters that identifies the maximum amount of a pollutant, that is listed as impaired, that a body of water can receive while still meeting water quality standards.

There is a Statewide TMDL – Mercury, 62-304.900(1), F.A.C. Requiring all industrial discharges (other than once-through cooling waters at industrial wastewater facilities and those sources covered under the Department's NPDES MS4 Permitting Program or for other discharges primarily treating stormwater and not expected to add mercury (total) to their discharge), if their effluent has quantifiable Mercury, must develop and implement a Mercury Minimization plan. There is no evidence of detectable mercury from this site nor is the site expected to be a source of mercury. The permit does not require the development of a mercury minimization plan.

4. DEP's Biological Assessment:

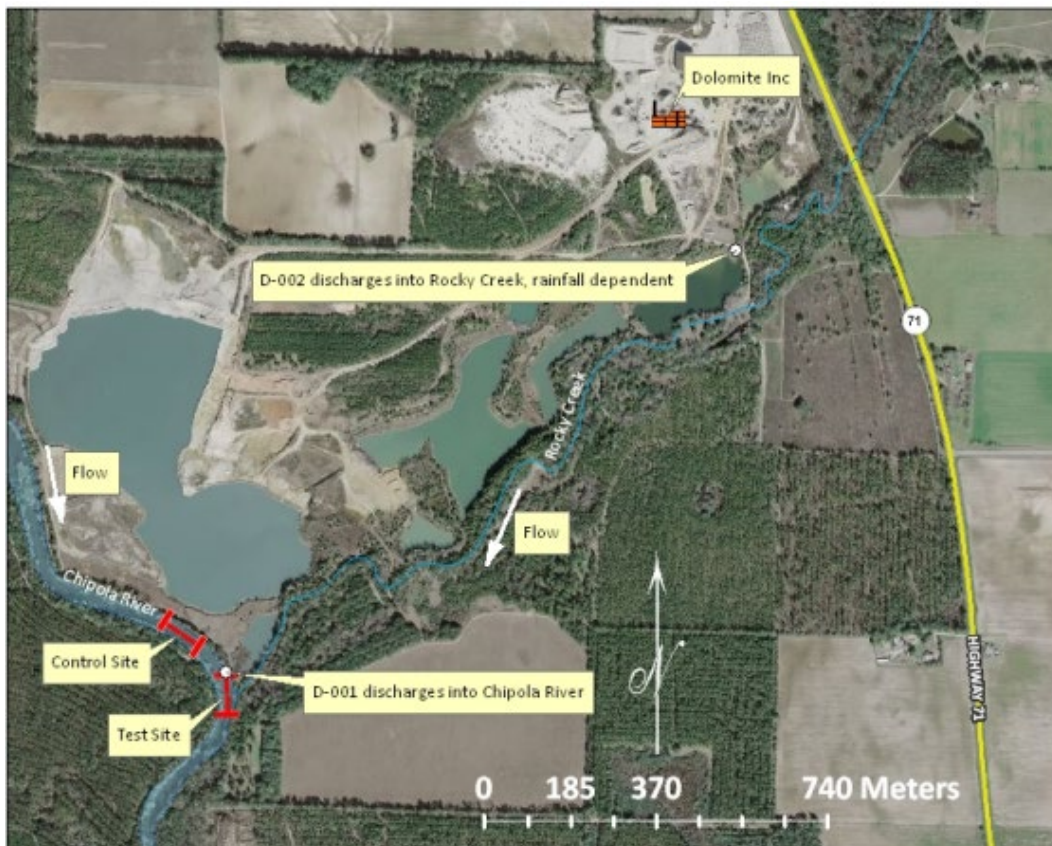
DEP's Biological Assessment (also known as Fifth-Year Sampling Inspection (FYI)) of [Dolomite, Inc. was based upon sampling conducted in February 2013](#). An updated FYI has not been conducted since the last renewal.

Report Results:

- No organic constituents were detected in the effluent or field bank.
- All metals in the effluent, control site, and test site grab samples were either undetected or detected at levels that comply with the Class III Freshwater Quality Criteria in Rule 62-302.530 F.A.C. and no metals were detected in the field bank.
- The Habitat Assessment scores for both the Control Site and Test Site were similar and within the Optimal Category.
- Dissolved Oxygen (mg/L), pH (s.u.), specific conductance (µmhos/cm), alkalinity, total suspended solids (TSS; mg/L), and turbidity (NTU) of the effluent, control site, and test site are in compliance with the Class III Freshwater Quality Criteria in Rule 62-302.530 F.A.C. TSS and turbidity were found to be within effluent permit limits.
- Chlorophyll α was detected at low levels in both the effluent and Test Site samples and was detected between the laboratory method detection limit (MDL) and practical quantitation limit (PQL) for the control site sample.
- Total Phosphorus was detected in the effluent, Control Site, and Test Site at low levels. Ortho-phosphate and total ammonia were undetected in the effluent sample but detected between the MDL and PQL in the Control Site and Test Site samples. No nutrients were detected in the field bank.
- Nitrate plus Nitrite was detected in the Control Site and Test Site at values at three times higher than the amount detected in the effluent sample. Total Nitrogen was detected in the Control Site and Test Site at values at two times higher than the amount detected in the effluent sample. Total Kjeldahl Nitrogen (TKN), Organic Nitrogen, and Organic Carbon were detected in the effluent, Control Site, and Test Site samples, all at similar levels. No nutrients were detected in the field bank.
- The freshwater unicellular green alga, *Pseudokirchneriella subcapitata*, was used to determine the Algal Growth Potential (AGP) values. The AGP was less than the

MDL for the effluent sample, detected at the Control Site sample but less than the “problem” threshold of 5.0 mg dry weight/L, and was undetected at the Test Site.

- The analytical chemistry suggests that the effluent, Control Site, and Test Site samples are phosphorus limited and that the effluent is not contributing to the nutrient enrichment at the Test Site in the Chipola River.
- Periphyton communities at both the Control Site and Test Site consisted mostly of diatoms, dominated by the *Staurosirella pinnata* species. There was no evidence of adverse impacts to the periphyton community from the effluent.
- Hester-Dendy samplers were used to collect quantitative macroinvertebrate data at the Control Site found a Shannon-Weaver Diversity Index of 3.98, with 649 individuals/m², 33 different taxa, and a dominant taxa of *Maccaffertium exiguum* (Ephemeroptera). Samples were not analyzed for the Test Site, as the Hester-Dendy samplers were found out of the water due to raised water levels.
- Dipnet samplers were used to collect qualitative macroinvertebrate data at both the Control Site and Test Site. Both sites had similar numbers of Trichoptera taxa, clinger taxa, long-lived taxa, and sensitive taxa and were both dominated by the pollution tolerant amphipod, *Hyalella azteca*. The Control Site had higher percentages of Gastropods while the Test Site had fewer taxa and overall percentages of Ephemeroptera. There is no evidence of negative impacts of macroinvertebrates at the Test Site due to the effluent.



5. Proposed Effluent Limits:

Turbidity:

The turbidity of the discharge from D-001 is limited to 29 NTU above background turbidity in accordance with Rule 62-302.530(70) F.A.C. The facility's effluent consistently complies with this standard.

Total Suspended Solids:

TSS of the discharge from D-001 is limited to 20.0 mg/L in accordance. The facility's effluent consistently complies with this standard.

pH:

The pH of the discharge from D-001 is limited between 6.0 s.u. and 8.5 s.u. in accordance with Rule 62-302.530(52)(c) F.A.C. The facility's effluent consistently complies with this standard.

Dissolved Oxygen (DO) Criteria:

The current criterion for Freshwater DO in the Panhandle West Bioregion is that no more than 10% of the daily average percent dissolved oxygen (DO) saturation values shall be below 67% saturation, per Rule 62-302.533(1)(a)1. F.A.C. The facility's discharge is not expected to contain any oxygen demanding substances and the flow from the facility, therefore, this criterion for DO saturation is not included in this permit.

Total Ammonia Nitrogen (TAN):

The current criterion for Freshwater TAN is defined as not exceeding more than 2.5x the value of the below equation per Rule 62-302.530(3) F.A.C. The facility's discharge is not expected to contain ammonia, therefore, this criterion for TAN is not included in this permit.

$$30 - \text{day Average} = 0.8876 \times \left(\frac{0.0278}{1 + 10^{7.688 - \text{pH}}} + \frac{1.1994}{1 + 10^{\text{pH} - 7.688}} \right) \times (2.126 \times 10^{0.028 \times (20 - \text{MAX}(T, 7))})$$

Additionally, a nearby (located approximately 1.5 miles south), similar facility, North Florida Rock (FL0980722), previously collected samples demonstrating that ammonia was not elevated in groundwater discharges making their way to surface waters.

Specific Conductance:

The current criterion for Freshwater Specific Conductance is 1,275 µmhos/cm per Rule 62-302.530(22) F.A.C. This has not been identified as a parameter of concern for exceeding water quality standards in previous discharges and the latest FYI, therefore, this criterion for Specific Conductance is not included in this permit.

Fecal Coliform & E-Coli:

The facility has no source of domestic wastewater and no disinfection for fecal coliform or E. coli. is required. therefore, the criterion for these parameters is not included in this permit.

Metals:

No metals have been identified as parameters of concern for exceeding water quality standards in previous discharges and the latest FYI, therefore, monitoring for metals is not included in this permit.

Organochlorine Pesticides:

No Organochlorine Pesticides have been identified as parameters of concern for exceeding water quality standards in previous discharges and the nutrient assessment of the latest FYI, therefore, monitoring for metals is not included in this permit.

Additionally, North Florida Rock (FL0980722) previously conducted screenings using EPA Method 608 and found Organochlorine Pesticides to be below detection levels in the groundwater.

Mercury:

The Statewide TMDL for Mercury, per Rule 62-304.900(1) F.A.C., states that mercury minimization plans are required for industrial wastewater facilities that demonstrate quantifiable mercury (total) levels in their effluent.

<https://www.flrules.org/gateway/ChapterHome.asp?Chapter=62-304>.

Mercury has not been identified as a parameter of concern nor is the facility expected to be a source of mercury, therefore, this permit does not require development of a mercury minimization plan.

Whole Effluent Toxicity:

Per to Rule 62-620.620(3)(a)3. F.A.C, this minor industrial wastewater facility is not expected to have the potential for aquatic toxicity, therefore, whole effluent toxicity is not a requirement in this permit.

6. Nutrients-Class III Fresh Waters Numeric Narrative Nutrient Criterion (NNC):

The receiving water, Chipola River (WBID 51D), is on the 4d Study List for Biology and Nutrients (Total Nitrogen).

Per Rule 62-302.531(2) F.A.C., the Numeric Nutrient Criteria (NNC) for freshwater streams in Rule 62-302.530(48)(b) F.A.C. shall be interpreted as achieved in the stream segment if:

- Information on Chlorophyll *a* levels, algal mats or blooms, nuisance macrophyte growth, and changes in algal species composition indicates there are no imbalances in flora or fauna, and either;
 - The average score of at least two temporally independent SCIs performed at representative locations and times is 40 or higher, with neither of the two most recent SCI scores less than 35, or;
 - The nutrient thresholds set forth in the table below are achieved:

Nutrient Watershed Region	Total Phosphorus Nutrient Threshold ¹	Total Nitrogen Nutrient Threshold ¹
Panhandle West	0.06 mg/L	0.67 mg/L

The facility is not expected to be a source of nutrients, other than what is present in groundwater flows making their way to the surface of the man-made ponds and from the man-made pond through the settling areas and, eventually, to the discharge at D-001. The latest FYI does not indicate nutrients of parameters of concern in the effluent.

STATE OF FLORIDA
DEPARTMENT OF ENVIRONMENTAL PROTECTION
NOTICE OF PERMIT ISSUANCE

The Department of Environmental Protection gives notice of its issuance of a permit to Dolomite, Inc. to operate the Dolomite, Inc, under Chapter 403, Florida Statutes.

The permit and application file are available for public inspection during normal business hours, 8:00 a.m. to 5:00 p.m., Monday through Friday, except legal holidays, at the Department's Northwest District Office, 160 W Government St., Suite 308, Pensacola, Florida 32502-5794, at phone number (850)595-8300. The files are also available electronically from the Department's Electronic Document Search Portal <https://prodenv.dep.state.fl.us/DepNexus/public/searchPortal> using Application Number FL0101192009.

NOTICE OF RIGHTS

This action is final and effective on the date filed with the Clerk of the Department unless a petition for an administrative hearing is timely filed under Sections 120.569 and 120.57, F.S., before the deadline for filing a petition. On the filing of a timely and sufficient petition, this action will not be final and effective until further order of the Department. Because the administrative hearing process is designed to formulate final agency action, the hearing process may result in a modification of the agency action or even denial of the application.

Petition for Administrative Hearing

A person whose substantial interests are affected by the Department's action may petition for an administrative proceeding (hearing) under Sections 120.569 and 120.57, F.S. Pursuant to Rules 28-106.201 and 28-106.301, F.A.C., a petition for an administrative hearing must contain the following information:

- (a) The name and address of each agency affected and each agency's file or identification number, if known;
- (b) The name, address, any e-mail address, any facsimile number, and telephone number of the petitioner, if the petitioner is not represented by an attorney or a qualified representative; the name, address, and telephone number of the petitioner's representative, if any, which shall be the address for service purposes during the course of the proceeding; and an explanation of how the petitioner's substantial interests will be affected by the agency determination;
- (c) A statement of when and how the petitioner received notice of the agency decision;
- (d) A statement of all disputed issues of material fact. If there are none, the petition must so indicate;
- (e) A concise statement of the ultimate facts alleged, including the specific facts that the petitioner contends warrant reversal or modification of the agency's proposed action;
- (f) A statement of the specific rules or statutes that the petitioner contends require reversal or modification of the agency's proposed action, including an explanation of how the alleged facts relate to the specific rules or statutes; and

(g) A statement of the relief sought by the petitioner, stating precisely the action that the petitioner wishes the agency to take with respect to the agency's proposed action. The petition must be filed (received by the Clerk) in the Office of General Counsel of the Department at 3900 Commonwealth Boulevard, Mail Station 35, Tallahassee, Florida 32399-3000, or via electronic correspondence at Agency_Clerk@FloridaDEP.gov. Also, a copy of the petition shall be mailed to the applicant at the address indicated above at the time of filing.

Time Period for Filing a Petition

Petitions filed by any persons other than the applicant, and other than those entitled to written notice under Section 120.60(3), F.S., must be filed within 14 days of publication of the notice or within 14 days of receipt of the written notice, whichever occurs first. The failure to file a petition within the appropriate time period shall constitute a waiver of that person's right to request an administrative determination (hearing) under Sections 120.569 and 120.57, F.S., or to intervene in this proceeding and participate as a party to it. Any subsequent intervention (in a proceeding initiated by another party) will be only at the discretion of the presiding officer upon the filing of a motion in compliance with Rule 28-106.205, F.A.C.

Extension of Time

Under Rule 62-110.106(4), F.A.C., a person whose substantial interests are affected by the Department's action may also request an extension of time to file a petition for an administrative hearing. The Department may, for good cause shown, grant the request for an extension of time. Requests for extension of time must be filed with the Office of General Counsel of the Department at 3900 Commonwealth Boulevard, Mail Station 35, Tallahassee, Florida 32399-3000, or via electronic correspondence at Agency_Clerk@FloridaDEP.gov, before the deadline for filing a petition for an administrative hearing. A timely request for extension of time shall toll the running of the time period for filing a petition until the request is acted upon.

Mediation

Mediation is not available in this proceeding.

Judicial Review

Once this decision becomes final, any party to this action has the right to seek judicial review pursuant to Section 120.68, F.S., by filing a Notice of Appeal pursuant to Florida Rules of Appellate Procedure 9.110 and 9.190 with the Clerk of the Department in the Office of General Counsel (Station #35, 3900 Commonwealth Boulevard, Tallahassee, Florida 32399-3000) and by filing a copy of the Notice of Appeal accompanied by the applicable filing fees with the appropriate district court of appeal. The notice must be filed within 30 days from the date this action is filed with the Clerk of the Department.